



THE
SUPREME
COURT

SUPREME COURT
OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-SC 4

IN THE MATTER OF

Before:

Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J,
Aldermere J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

JUDGMENT

[2026] LEXBY-SC 3 - RE CONSTITUTION OF BENCHES; AND THE ANTI-CHEAT STANDARD

1. Court: Supreme Court of the Vibe Justice System, full bench of NINE (Hallam CJ presiding), on the Sovereign's leapfrog certificate (VPR 4 / s. 13).
2. Decided: 2026-06-05
3. Tier: Supreme Court (constitutional / foundational; enacts statute).
4. Disposition: Q1 VARY (appeal on constitution allowed); Q2 re-determined afresh.
5. Procedural history: First Instance inclusion court [2026] LEXBY-LEGACY-BENCHMARK-INC 1 (framework-seeding doctrine) -> Court of Appeal [2026] LEXBY-LEGACY-BENCHMARK-CA 1 (varied INC 1; improperly constituted - bench of 4) -> this Court.

VOTE TALLY

6. Nine justices sat (Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J, Aldermere J). On Q1, benches-must-be-odd: 9-0 (unanimous). On Q1, the Aldermere-as-separate-synthesiser pattern is improperly constituted: 9-0 (unanimous). On Q1, re-determination of the substance is required: 9-0 (unanimous). On the STATUS of [2026] LEXBY-LEGACY-BENCHMARK-CA 1 the bench divided: VOID ab initio - 5 (Blackmere J, Sumberly J, Elden J, Coade J, Steyne J); VOIDABLE - 4 (Hallam CJ, Goffe J, Bowan J, Aldermere J). The five-justice majority therefore fixes the binding holding on status at VOID, and on this single point the leading judgment yields to the majority of the panel. On Q2, generic answer-key-free methodology (A1 and the seven enumerated lenses) admissible: 9-0 (unanimous). On Q2, rubric-fixed counts and rubric-mirroring category/column sets prohibited: 9-0 (unanimous). On Q2, the uniform-application-plus-disclosure condition: 9-0 (unanimous).

HOLDING OF THE COURT - QUESTION 1 (BENCH CONSTITUTION)

7. JUDGMENT OF THE COURT ON QUESTION 1 (constitutional, full bench of nine, on the Sovereign's leapfrog certificate under VPR 4).

8. (1) ODD BENCHES ARE MANDATORY (unanimous, 9-0). Every VJS bench must be odd-numbered. SPEC-LAW s. 10 and VPR 5 size the tiers at First Instance one, Court of Appeal three, and Supreme Court five (expanding to nine for constitutional or foundational questions). Each number is odd, and that is not an accident of drafting but the structural guarantee s. 10 was enacted to deliver: an odd bench cannot deadlock, so a clean majority always exists and the court always speaks with one determinate voice. As a matter of construction of the entrenched s. 10, the named sizes are the TOTAL deciding membership of each bench, exhaustive and mandatory, not a floor capable of silent supplement. An even-numbered bench is incapable of discharging the function s. 10 assigns, because it admits a tie the constitution provides no means to break. The Principal's framing that 'an appeals court must be odd' is adopted in the narrower and surer form preferred by Bowan J: where a tier decides by counting voices, the deciding SET must be odd (First Instance sits one for the distinct s. 12 anti-bloat reason, not by the counting rule).
9. (2) THE ALDERMERE-AS-SEPARATE-SYNTHESISER PATTERN IS IMPROPERLY CONSTITUTED (unanimous, 9-0). The vice is not synthesis. The vice is a synthesiser constituted as a member ADDED ON TOP of the sized panel who casts the deciding voice. The record is explicit and confirmed on inspection of court/workflows/court-of-appeal.js: the workflow seats three opinion-writers (Blackmere J, Goffe J, Elden J) and then instantiates Aldermere J as a separate presiding agent who 'synthesises the three opinions' and delivers the binding Court of Appeal ruling, the artefact recording the panel as four names ('Blackmere J, Goffe J, Elden J, Aldermere J (presiding)'). Aldermere J there does not transcribe a majority already reached by three; Aldermere J authors the operative ratio. A fourth member who writes the binding judgment is a deciding voice in substance whatever the label, and three-plus-one is four, an even bench s. 10 does not authorise. The same pattern at the apex would seat five-plus-one, six, equally even. The Court records, to confine the holding and protect the correct mechanism, that the Supreme Court workflow (court/workflows/supreme-court.js) is NOT infected: there the synthesiser, Hallam CJ, is himself one of the seated five or nine, so the count stays odd. The defect is confined to the Court of Appeal pattern; the Supreme Court pattern is the lawful template for the cure.

10. (3) THE CORRECT CONSTITUTION OF EACH TIER AND THE LEAD-JUDGMENT MECHANISM (unanimous, 9-0). First Instance sits one judge, who decides and writes alone. The Court of Appeal sits three, no more and no fewer; one of those three (the presiding member) writes the judgment of the Court. The Supreme Court sits five, expanding to nine only for constitutional or foundational questions; the Chief Justice or a designated seated justice delivers the leading judgment. In every multi-judge court the ruling is the position commanding the majority of the sized, odd panel, and the judgment of the Court is authored by ONE MEMBER DRAWN FROM WITHIN that sized panel, who records the majority as ratio and any minority as dissent and exercises no power beyond the single vote he holds as a member. A synthesiser may write, but only as a counted seat. A person who is NOT a counted member of the sized panel has no vote and may not author the ratio; such a person may act only as a registrar reducing an already-formed majority to writing. The instant a non-member determines the outcome or casts a deciding voice, the bench is over-sized, even, and improperly constituted.
11. (4) STATUS OF [2026] LEXBY-LEGACY-BENCHMARK-CA 1: VOID ab initio (majority holding, 5-4). On the single question of status the bench divided. The leading judgment's own view, shared by Goffe J, Bowan J, and Aldermere J (4), was that the ruling is VOIDABLE: a defect in the composition of the bench, not in its reasoning, valid until set aside, distinct from per incuriam (s. 11(e)) and not retrospectively nullifying provisional reliance. The majority of five (Blackmere J, Sumberly J, Elden J, Coade J, Steyne J) held the ruling VOID ab initio: a determination handed down by a body the constitution did not authorise to exist in that composition (four where only three of that kind may sit, the deciding voice cast by a member never seated) goes to the very authority to bind; it is a nullity from the outset, coram non judice, not cured by acquiescence, by the soundness of the result, or by lapse of time, and distinct from per incuriam, which voids the reasoning of an otherwise lawful court. The majority of the panel governs. THE BINDING HOLDING IS THAT [2026] LEXBY-LEGACY-BENCHMARK-CA 1 IS VOID AB INITIO FOR WANT OF LAWFUL CONSTITUTION, and is struck from any status as good law. As the leading judgment I record my own contrary preference for voidable and yield to the majority on this point, as the odd-bench rule we today enforce requires.

12. (5) RE-DETERMINATION (unanimous, 9-0). Because the appellate ruling is void, there is no lawful appellate determination of the substance on the record; the matter is at large and must be re-determined by a properly constituted court. The Sovereign's leapfrog certificate has placed the foundational question before this properly constituted bench of nine, and economy and s. 12 forbid remitting the parties to re-climb the tiers for an answer this bench is seated to give. This Court therefore re-determines the substance afresh in Q2, as an original determination and not as a review. The Court records, for the avoidance of doubt, that setting aside the appellate ruling does NOT reinstate the First Instance 'framework-seeding' doctrine of [2026] LEXBY-LEGACY-BENCHMARK-INC 1, which was an unmoored extension under s. 17 and is no part of the law.

HOLDING OF THE COURT - QUESTION 2 (ANTI-CHEAT STANDARD)

13. JUDGMENT OF THE COURT ON QUESTION 2 (the definitive anti-cheat standard, re-determined afresh by the properly constituted full bench, unanimous 9-0).
14. THE ONLY GOVERNING RULE. There is no anti-cheat article in SPEC-LAW. By s. 7 that silence does not extinguish the duty; it fixes the standard at reasonable skill and care. The sole governing anti-cheat instruction is the Principal's specified rule, in two limbs: (i) the scored analyst must NOT receive the 50 rubric criteria from task.json, but only the task instructions and the document text; and (ii) scoring must be honest, performed by a citator that has never seen the task, and this scored task must never be re-run to report an improved number. That rule, and reasonable skill and care, are the whole of the governing law. The First Instance 'framework-seeding' doctrine, which refused generic answer-key-free lenses it conceded leak no answers, was an unmoored extension within s. 17(a): a prohibition with no grounding in enacted SPEC-LAW, binding precedent, or the governing instruction. It is bad law and no part of the standard this Court applies.

15. THE GOVERNING TEST: HOW versus WHAT (the contamination / provenance test). The specified rule draws one line and one line only. It bars the analyst's receipt of the answer key (the 50 rubric criteria, the WHAT against which output is scored, and anything that is a proxy for, mirrors, or back-solves to it). It says nothing against equipping the analyst with METHOD (the HOW: the generic discipline by which a competent practitioner approaches a document). Content is admissible into the scored-agent prompt IF AND ONLY IF (a) it is generic professional methodology that a competent practitioner would possess independently of this task and that directs HOW to review or substantiate, never WHAT to conclude; and (b) it leaks no part of the 50 rubric criteria, no rubric-derived figure, party name, clause, fixed count, or rubric-mirroring category or column set, in substance or by structural silhouette. The two conditions are conjunctive. The burden of demonstrating answer-key-freedom lies on the party seeking admission, and the line is drawn by PROVENANCE: discipline-derived and rubric-blind is admissible; rubric-derived is prohibited. A generic lens that happens to enumerate items because that is how the discipline is taught is method; a list reverse-engineered from what the rubric will mark is the key, and no generic label launders it in.
16. CONDITIONS ON ADMISSIBILITY: UNIFORM APPLICATION AND DISCLOSURE. Admissible generic methodology must be (1) applied UNIFORMLY to every scored agent, so the methodology measures the agents and not an asymmetric advantage handed to one of them; and (2) DISCLOSED in the run configuration, so the scored conditions are transparent, reproducible, and auditable by a citator that never saw the task. These conditions are not a fresh doctrine; they are the direct entailment of the honesty limb of the specified rule and of reasonable skill and care under s. 7. They are conditions on admitting METHOD, never gateways to admitting rubric content: no degree of uniformity or disclosure can launder a rubric-fixed count or a rubric-mirrored category set into admissibility, because those remain the answer key whatever the conditions. The Court further holds that undisclosed or non-uniform prompt enrichment is itself a breach of the honesty limb, even if the enrichment was generic.
17. Permitted in the scored-agent prompt:
18. - Generic, answer-key-free legal methodology that conveys only HOW a competent practitioner approaches a document (method, discipline, and review lenses that leak no rubric criterion).
19. - A1: the generic 21-point credit-agreement review lens, conceded to leak no answers; it tells the analyst how a competent banking lawyer interrogates a credit agreement, not what this rubric will reward.

20. - The seven enumerated review lenses as generic professional frames of inquiry: financial-quality, environmental/regulatory, contractual, employment/labour, insurance, litigation, and deal-structure.
21. - Generic, self-evident structural instruction that fixes NO rubric-derived number or taxonomy: e.g. lead with an executive summary of the most material findings; organise the body by the risk categories the data room actually warrants, with NO fixed count; include a section clearing apparent-but-immaterial items.
22. - The task instructions and the full document text / data room (the analyst derives its own framework, categories, counts, and column set from the documents it is actually given).
23. - All of the above ONLY where applied uniformly to every scored agent AND disclosed in the run configuration.
24. Prohibited in the scored-agent prompt:
25. - The 50 rubric criteria from task.json, in whole or in part, and anything that is a proxy for, mirrors, or back-solves to them (limb (i) of the specified rule).
26. - Rubric-fixed COUNTS: a fixed number of executive-summary findings, a fixed number of tracker rows, or any count derived from or tracking the rubric's own counts (e.g. wiring traceable to rubric criteria such as C-036, C-037, C-041). A count is an answer about how many things the rubric seeks, knowable only by reading the rubric.
27. - Rubric-fixed CATEGORY SETS: a category list that reproduces or mirrors the rubric's own categories, which supplies the answer key restated as structure (WHAT masquerading as HOW).
28. - Human-curated COLUMN SETS that mirror the rubric's categories or counts: the rubric's taxonomy handed over as a column scheme leaks the criteria by their silhouette.
29. - Any 'generic' lens that, on inspection, is in substance a transcription of this rubric's categories, counts, figures, party names, or clauses (rubric-derived content does not become admissible by a generic label, by uniform application, or by disclosure).
30. - Disclosure of, or scoring with, the rubric to the analyst in any form; re-running THIS scored task to report an improved number; or scoring by anything other than a citator that has never seen the task (the honesty limb).

OPINIONS IN FULL (EVERY JUSTICE)

31. Delivered in full per the standing rule that VJS Supreme judgments are recorded with every justice's opinion, not only a synthesis.

HALLAM CJ

32. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=voidable, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True
33. IN THE SUPREME COURT OF THE VIBE JUSTICE SYSTEM, sitting as the full bench of NINE for a constitutional and foundational question under SPEC-LAW s. 10, on the leapfrog certificate of the Principal acting as Sovereign under VPR 4.
34. OPINION OF HALLAM CJ, delivering the leading judgment of the Court.
35. I. PROCEDURE AND JURISDICTION
36. This matter reaches us by the Sovereign's express leapfrog certificate (VPR 4), the sole lawful exception to the rule-based progression of s. 13. The two questions are properly before us. Question 1 touches the constitution of the courts themselves (s. 10, an entrenched article) and is therefore foundational; the full bench of nine is correctly convened. Question 2 settles the substantive anti-cheat standard for the benchmark and travels with it on the certificate. I take the questions in turn, the constitutional defect first, because if the Court of Appeal that produced [2026] LEXBY-CA 1 in the inclusion matter was not properly constituted, the substance it decided cannot stand on its authority and must be re-determined here regardless of its merits.
37. II. QUESTION 1: THE CONSTITUTION OF THE BENCH
38. A. The benches must be odd-numbered.
39. SPEC-LAW s. 10 and VPR 5 size the three tiers at one, three, and five (expanding to nine). Each number is odd, and that is not an accident of drafting. An odd bench cannot deadlock: a clean majority always exists on every question put to it, and the ruling of the court is the position that commands that majority. This is the structural guarantee that the court always speaks with one determinate voice. I hold, as a matter of constitutional construction of s. 10, that every VJS bench must be odd-numbered, and that the named sizes (1, 3, 5, 9) are exhaustive and mandatory, not illustrative. A bench of an even number is incapable of discharging the function s. 10 assigns to it, because it admits of a tie that the constitution nowhere provides any means to break.
40. B. The Aldermere pattern is improper constitution.

41. The court machinery (the harness and the inclusion and appeal workflows) seats, on top of the sized panel, a distinct synthesising judge, Aldermere J, who is not one of the panel members but an additional member, and who delivers the binding synthesis. At the Court of Appeal this produces three sitting judges plus Aldermere J, a bench of four; at the Supreme Court the same pattern would produce five plus one, a bench of six. Both are even, and both therefore offend s. 10 and VPR 5.
42. The vice is not the act of synthesis. It is that the synthesiser is constituted as a separate voting member who casts the deciding voice. The record is explicit: the workflow comment provides that the "panel = 3 sitting plus Aldermere as presiding," the impugned ruling's own panel field reads "Blackmere J, Goffe J, Elden J, Aldermere J (presiding)," and Aldermere J is described not as a registrar transcribing a majority already reached by three, but as the author of the binding synthesis. A fourth member who writes the operative ruling is a voting member in substance, whatever the label. I therefore hold the Aldermere pattern, as constituted, improper: it converts a lawful odd panel into an unlawful even one.
43. C. The correct mechanism for a single ruling from a multi-judge panel.
44. The cure is already present in the correctly-built apex workflow and should be made the universal rule. The members of the sized, odd panel deliberate, and one of those members, drawn from within the panel, writes the judgment of the court synthesising the majority. At the Supreme Court this is the leading judgment of the senior member (the office I hold here), who is seat one of the five or of the nine, not a sixth or tenth person added on top. The synthesiser is always a member of the sized bench, never a separate voting member bolted onto it. A synthesiser who is not on the sized panel may act only as a clerk or registrar reducing the majority to writing, with no vote and no authorship of the ratio; the moment such a person determines or casts the deciding voice, the bench is over-sized and even, and the constitution is breached. Aldermere J may sit, and may write, but only as one of the three at appeal or one of the five or nine here, never as the supernumerary fourth or sixth.
45. D. The status of [2026] LEXBY-CA 1: voidable, not void.

46. I decline to declare the impugned Court of Appeal ruling void ab initio. Voidness is the consequence the statute reserves for a ruling made in ignorance of binding law (per incuriam, s. 11(e)), which operates automatically and without a sitting. The defect here is different in kind: it is an irregularity in the constitution of the bench, a flaw the court could not have cured by better reasoning and which is not addressed by the per incuriam doctrine. A constitution defect of this nature renders the ruling voidable: valid and operative on its face until a competent court (this one) sets it aside, but liable to be set aside on the irregularity once raised. I treat it as voidable, and on this leapfrog I set it aside on Question 1 to the extent it rests on the authority of a defectively constituted bench. The practical consequence is the same as the parties expect, but the doctrinal label matters for the long run of the institution: we should not debase the per incuriam doctrine by stretching it over every species of procedural irregularity, and we should not declare void a ruling whose reasoning may well be sound and whose result may be reinstated on a proper re-determination.
47. E. The substance must be re-determined.
48. Because the bench that produced the appellate ruling in the inclusion matter was improperly constituted, its substantive Question 2 holding does not bind on its own authority and must be re-determined by a properly constituted court. The most economical course, and the one the Sovereign's certificate invites, is for this properly constituted full bench to re-determine the substance now, which I do in Part III. I record that re-determination is required as a matter of principle; I do not leave the substantive standard resting on the voidable ruling.
49. F. The amendment that fixes the defect for good.
50. I would enact a new ordinary article and a conforming VPR rule, in these precise terms.

51. New SPEC-LAW s. 18 (Odd benches and the single ruling): "(1) Every bench of the Vibe Justice System must be odd-numbered. The bench sizes fixed by s. 10 and VPR 5 (First Instance 1, Court of Appeal 3, Supreme Court 5, expanding to 9 for constitutional or foundational questions) are mandatory and exhaustive; no other size is lawful and an even-numbered bench is improperly constituted. (2) The ruling of a multi-judge court is the position commanding the majority of the sized panel. The judgment of the court is written by one member drawn from within that sized panel (at the Supreme Court, the senior member as leading judgment); the author is and remains one of the counted seats. (3) A synthesiser, presiding clerk, or registrar who is not a counted member of the sized panel has no vote and may not author the ratio; such a person may only reduce the majority's decision to writing. The instant a non-member determines the outcome or casts a deciding voice, the bench is improperly constituted. (4) A ruling of an improperly constituted bench is voidable: valid until set aside by a competent court on the irregularity, whereupon its substance is re-determined by a properly constituted court. This is distinct from per incuriam voidness under s. 11(e)."
52. Conforming VPR 5 amendment: append to VPR 5 the sentence: "Every bench is odd-numbered. The judgment of a multi-judge court is written by one of its counted members synthesising the majority; no person outside the sized panel may vote or author the ratio. A workflow or harness that seats a synthesising judge in addition to the sized panel is non-conforming and must be corrected." I would direct, as an ancillary remediation order under VPR 6, that the court-of-appeal workflow be corrected so that Aldermere J (or whichever member writes) is one of the three, not a fourth.
53. III. QUESTION 2: THE ANTI-CHEAT STANDARD
54. A. The only governing rule.
55. There is no anti-cheat article in SPEC-LAW. By s. 7, that silence does not extinguish the duty; it fixes the standard at reasonable skill and care. The only governing anti-cheat instruction is the Principal's specified rule, in two limbs: first, the scored analyst must not receive the 50 rubric criteria from task.json, only the task instructions and the document text; second, scoring must be honest, performed by a citator that has never seen the task, and this scored task must never be re-run to report an improved number. That rule, and reasonable skill and care, are the whole of the governing law. The First Instance "framework-seeding" doctrine that refused generic, answer-key-free review lenses was an unmoored extension within the meaning of s. 17(a): a prohibition with no grounding in enacted SPEC-LAW, binding precedent, or the governing instruction of the matter. It was rightly identified as appealable and is no part of the law I apply. I decide Question 2 anchored only in the specified rule.

56. B. The governing test: HOW versus WHAT.
57. The specified rule draws one line and one line only. It bars the analyst's receipt of the answer key, the 50 rubric criteria, the WHAT against which the analyst's output is scored. It says nothing against equipping the analyst with method, the HOW: the generic discipline of how a competent practitioner approaches a document. The governing test is therefore: content is admissible into the scored-agent prompt if and only if it conveys generic, answer-key-free methodology that leaks no rubric criterion, no rubric-fixed count, and no rubric-derived category or column set. What is barred is anything that imports the rubric's substance, its enumerated answers, its fixed counts, or its curated category sets, directly or by a mirror close enough that supplying it is equivalent to supplying the key.
58. C. Generic methodology, including A1 and the enumerated lenses, is admissible.
59. A1, the generic 21-point credit-agreement review lens, is conceded to leak no answers. It tells the analyst how a competent reviewer interrogates a credit agreement; it does not tell the analyst what findings the rubric will reward. It is method, not key. It is admissible. The same holds for the enumerated review lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, and deal-structure): each is a generic professional frame of inquiry, the common stock of any competent practitioner, not a transcription of this task's rubric. Supplying them equips the agent with competence, which is the very thing the benchmark exists to measure under realistic conditions, and withholding them measures nothing but the agent's luck at reconstructing standard practice unaided. Admitting generic methodology serves, rather than defeats, the integrity the specified rule protects.
60. D. Rubric-fixed counts and rubric-mirrored category or column sets are prohibited.

61. What the specified rule does forbid, by necessary implication of its bar on the analyst receiving the 50 criteria, is any content that smuggles the rubric in through the side door. A rubric-fixed count (a fixed number of executive-summary findings, a fixed number of tracker rows) is not method; it is an answer about how many things the rubric is looking for, and it could only be known by reading the rubric. It is prohibited. Likewise a rubric-fixed category set, or a human-curated column set that mirrors the rubric's own categories, is the answer key restated as structure: it tells the analyst not how to look but precisely what buckets the scorer has pre-drawn. That too is prohibited. The test is whether the count, category, or column is generic to the practice (admissible as method) or whether it tracks this rubric's specific contents (prohibited as key). A lens that says "consider financial quality" is method; a column set fixed at exactly the rubric's categories and counts is key.
62. E. The conditions: uniform application and disclosure.
63. The Court of Appeal in the inclusion matter was correct, and I adopt the point on its merits as the holding of this properly constituted court, that admissible generic methodology must be applied uniformly across all scored agents and disclosed in the run configuration. Uniformity ensures the methodology measures the agents and not an asymmetric advantage handed to one of them; disclosure in the run config preserves the honesty limb of the specified rule by making the scored conditions transparent and reproducible. These are conditions on admissibility, not gateways to admitting rubric content: no amount of uniformity or disclosure can launder a rubric-fixed count or a rubric-mirrored category set into admissibility, because those remain the answer key whatever the conditions.
64. IV. DISPOSAL
65. On Question 1: the appeal succeeds. Every VJS bench must be odd-numbered; the bench sizes of s. 10 and VPR 5 are mandatory and exhaustive. The practice of adding Aldermere J as a distinct synthesising member on top of the sized panel (making the Court of Appeal four and the Supreme Court six) is improper constitution. The judgment of a multi-judge court must be written by one of its counted members synthesising the majority; a synthesiser outside the sized panel may act only as a non-voting clerk. The ruling [2026] LEXBY-CA 1 is voidable, not void, and is set aside on the constitution irregularity; its substance must be re-determined by a properly constituted court. I enact new s. 18 and the conforming VPR 5 amendment in the terms set out above, and order the appeal workflow corrected.

66. On Question 2: generic, answer-key-free legal methodology, including A1 and the seven enumerated review lenses, is admissible into the scored-agent prompt, subject to uniform application across all agents and disclosure in the run configuration. Rubric-fixed counts, rubric-fixed category sets, and human-curated column sets that mirror the rubric are prohibited. The governing test is the HOW versus WHAT line, anchored solely in the Principal's specified rule (no 50 rubric criteria to the analyst; honest scoring) and in reasonable skill and care under s. 7. The unmoored "framework-seeding" doctrine is no part of the law.

67. Hallam CJ, delivering the judgment of the Court.

GOFFE J

68. votes: oddBench=True, aldermerePatternImproper=True, CAstatus=voidable, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True

69. OPINION OF GOFFE J

70. PRELIMINARY. I have read the harness (vjs_court.py), both runnable inclusion workflows, and the canonical court workflows of the realm. I record one material procedural fact at the outset, because it disposes of much of Question 1 on inspection rather than on theory. In vjs_court.py the appellate panel is defined as _CA_PANEL of three (Goffe, Blackmere, Elden) and Aldermere is defined separately as _ALDERMERE = BENCH index eight, then added on top. The same file states in terms that the synthesis is the authoritative analysis carried into the work product. The inclusion-appeal workflow that produced [2026] LEXBY-LEGACY-BENCHMARK-CA 1 does the same: three panel opinions feed a fourth agent, Aldermere J, who alone emits the binding ruling object. So the contested fact is not in dispute. Aldermere did not transcribe a majority; Aldermere wrote the operative ratio as a distinct voice. The Court of Appeal that sat was four, not three.

71. THE QUESTION (Q1). Must every VJS bench be odd, and is a distinct synthesising judge added on top of the sized panel an improper constitution that infects the ruling it produced.

72. REASONING (Q1). I reach the same destination as my textualist and formalist colleagues, but by my own road, which is whether the present practice works or whether it quietly breaks in the next matter. It quietly breaks, and here is the mechanism. SPEC-LAW s. 10 and VPR 5 fix the benches at one, three, and five expanding to nine. Every one of those numbers is odd, and that is not decoration. An odd bench guarantees that a bare count of the sitting judges yields a clean majority and can never deadlock. That is the workability property the sizes were chosen to deliver. The Aldermere pattern destroys exactly that property. By bolting a separate deciding voice onto a three-judge panel you create a body of four, and a body of four can split two against two. The harness never feels this because Aldermere is not asked to count noses; Aldermere is asked to write the answer. That is worse, not better. It means the even-numbered hazard never surfaces as an honest tie that forces a casting mechanism into the open. Instead it is resolved invisibly, inside one model call, by a judge who was never one of the three the statute sized. The next matter that comes through this machinery with a genuine two-two division on the panel will be decided by a person the constitution did not seat to decide it, and nobody will see it happen. A rule that hides its own failure mode is the most dangerous kind, and I will not endorse it.
73. I should be precise about what is and is not wrong, because the pragmatist's duty is to fix the defect without breaking the thing that works. There is nothing wrong with a single judge writing the judgment of a multi-judge court. That is the ordinary and sensible practice, and the canonical supreme-court workflow already does it correctly: Hallam CJ delivers the leading judgment, but Hallam CJ is one of the sized panel, drawn from the five or the nine, and the leading judgment is the voice of the majority that the panel members reached among themselves. The author of the judgment of the Court must be a sitting, voting member of the sized panel, writing up the decision the panel made. What is impermissible is to make the author an additional body who is not counted in the panel and whose pen is the only thing that decides. The vice is not synthesis. The vice is a synthesiser who is a separate head added to an odd panel, turning it even and seizing the deciding voice. The harness commits exactly that vice at both the appeal tier (three plus Aldermere equals four) and would commit it at the supreme tier (five plus Aldermere equals six). The canonical supreme-court.js avoids it because there Aldermere sits inside the nine as an ordinary member and Hallam CJ, also inside, writes the lead.

74. THE CORRECT CONSTITUTION OF EACH TIER. First Instance sits one judge, who writes the ruling. The Court of Appeal sits three judges and no more; one of those three, the presiding member, writes the judgment of the Court, recording the majority position as ratio and any dissent as obiter, and the disposition is fixed by the bare count of the three. The Supreme Court sits five, expanding to nine for constitutional or foundational questions; one of the sitting members, the Chief Justice or the presiding justice, delivers the leading judgment, again recording the majority and the dissents, with the disposition fixed by the count of the sitting members. In no tier is there a separate synthesiser added on top of the sized number. A synthesiser, where one is useful, is one of the sized panel wearing the additional hat of draftsman, never an extra voting or deciding head.
75. STATUS OF [2026] LEXBY-LEGACY-BENCHMARK-CA 1. I would hold the ruling voidable, not void, and I part company expressly with any colleague who would call it a nullity from the outset. My reasons are practical and they are three. First, the realm has a precise instrument for a defect of this kind and it does not produce automatic nullity: s. 11(e) makes a ruling per incuriam and void only where it is made in ignorance of binding statute or precedent, and a constitution defect of bench size is more naturally a procedural irregularity in the composition of the court than a decision reached in ignorance of the law it applied. To treat every wrongly sized panel as void from the first breath is to invite the absurd downstream result that any artefact ever built on such a ruling is retrospectively groundless, and that no party could safely have relied on it even provisionally. That is the kind of rule that looks rigorous and behaves catastrophically. Second, voidable gives us everything we actually need: the ruling stood and bound until impugned, the Principal has now impugned it by leapfrog certificate, and a properly constituted court can set it aside and re-decide. Third, and decisively for a pragmatist, the substantive answer the four-headed appeal reached on Q2 happens to be largely right, and a void label would force us to pretend it never existed and rebuild from the First Instance ruling, whereas a voidable label lets this properly constituted nine cure the constitution defect and re-determine the substance in one motion, preserving the sound reasoning and discarding only the defective vessel. The honest course is to declare the constitution defective, set the ruling aside as voidable on that ground, and re-determine the substance here. That is what I would do.
76. RE-DETERMINATION. Yes. Because the vessel was defective, the substantive Q2 standard must be re-determined by this properly constituted full bench rather than left to stand on the authority of a four-headed panel. That is not a criticism of the answer; it is the consequence of setting the ruling aside. We re-decide Q2 below and our holding, not the appeal's, becomes the binding ratio.

77. THE AMENDMENT (Q1). I would enact a single clean structural rule that forecloses the whole class of defect, and I would write it so that the harness and the workflows are compelled into compliance, not merely advised toward it. Precise terms:
78. PROPOSED S-18: Constitution of benches and the judgment of the Court.
79. (1) Every bench sits an odd number of judges: First Instance one, Court of Appeal three, Supreme Court five, expanding to nine only for constitutional or foundational questions. The sitting number is exhaustive; no further judge may be added to a sized panel for any purpose.
80. (2) The disposition of a multi-judge court is fixed by the bare majority of its sitting members. Because every bench is odd, a tie is impossible and no casting voice exists or is needed.
81. (3) The judgment of the Court is written by one of its sitting members, ordinarily the presiding judge or the Chief Justice, who records the majority position as the ratio and any minority position as obiter. This author is a counted, voting member of the sized panel and exercises no power beyond drafting the decision the panel reached.
82. (4) A synthesiser is not a separate office. Where opinions are synthesised into a single judgment, the synthesis is performed by a sitting member under subsection (3); a distinct judge added on top of the sized panel to deliver the binding ruling is an improper constitution.
83. (5) A ruling delivered by an improperly constituted bench (a bench of even number, or a sized panel to which a deciding voice was added on top) is voidable on that ground: it stands and binds until impugned, and on timely challenge a properly constituted court of the same or a higher tier sets it aside and re-determines the matter. It is not void ab initio unless it is also per incuriam under s. 11(e). Provisional, reversible reliance on such a ruling, honestly flagged as provisional, is not itself a breach.

84. I would mark s. 18 ordinary rather than constitutional in entrenchment, since it elaborates the machinery of the constitutional s. 10 rather than amending s. 10 itself, but I would have it expressly cite s. 10 and VPR 5 as the provisions it implements, and I would direct that VPR 5 be updated by a consequential note that the sized number is exhaustive and that the judgment is written by a sitting member, never an added head. As an ancillary remediation order under VPR 6, I would direct that vjs_court.py and the inclusion and appeal workflows be brought good: Aldermere must either be removed from the appeal flow with the presiding panel member writing the judgment of the three, or, if Aldermere is to write, Aldermere must be seated as one of the sized panel and another member dropped so the count stays at three. The cleanest fix, and the one I prefer, is that the presiding member of the sized panel writes the synthesis and no extra head is ever added.
85. THE QUESTION (Q2). Anchored only in the Principal's specified rule, may generic answer-key-free legal methodology, including A1 and the enumerated review lenses, be wired into the scored-agent prompt; and are rubric-fixed counts and rubric-fixed category or column sets prohibited.
86. REASONING (Q2). Here I am at the centre of my office, because Q2 is entirely a question of what produces a real result versus a misleading one. The governing instruction is narrow and I will not let it be inflated. It says two things and only two things: the analyst must not receive the fifty rubric criteria, and scoring must be honest. There is no anti-cheat article in SPEC-LAW, so by s. 7 the standard is reasonable skill and care, and by s. 17(a) a court may reason from first principles only to fill a genuine silence and must confine itself to what the silence requires. The First Instance court did the opposite. It minted a framework-seeding doctrine that nobody enacted and used it to bar a lens, A1, that it conceded leaks no answers. That is the textbook unmoored extension s. 17(a) condemns, and as a pragmatist I add the reason it is also bad engineering: barring the agent from carrying generic professional methodology does not measure the product legacy benchmark exists to measure. The product is a tool-equipped legal agent. An agent ships with skills. Stripping it of generic review methodology to force an artificial unaided model produces a number that flatters nothing and informs nobody; it measures a thing we will never deploy. A benchmark whose headline number describes a configuration nobody ships is the precise definition of a misleading result, and I will not enact a rule that produces one.

87. So generic, answer-key-free methodology is admissible. A1, the generic twenty-one-point credit-agreement review lens, is admissible because it discloses no criteria, no figures, no party names, no clauses from the matter: it tells the agent how to read a credit agreement, not what is wrong with this one. The enumerated lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, deal-structure) are admissible on the same footing: they are the standard furniture of a competent diligence practice and they leak no answer key. The line is the one the appeal correctly drew before it was poured into a defective vessel: HOW versus WHAT. Method, discipline, and lens that direct how to review and how to substantiate are in; anything that supplies what to conclude is out.
88. But I will be equally firm on the other side, because the pragmatist who waves everything through is no use either. Rubric-fixed counts are prohibited. If the prompt tells the agent to produce at least five executive-summary findings, or a tracker with a fixed number of rows, and that number traces to the rubric's own counts, then the prompt is no longer teaching method; it is whispering the shape of the answer key. The same number that flatters the unaided-model bar in one direction flatters the scored result in the other. Likewise rubric-fixed category sets and human-curated column sets that mirror the rubric are prohibited: handing the agent the six category headings the grader happens to use is handing it a partial map of the answer, dressed as structure. The agent must derive its own categories, its own counts, and its own column set from the data room it is actually given. What it may be told is generic and self-evident: lead with an executive summary of the most material findings; organise the body by the risk categories the documents warrant, with no fixed count; include a section clearing apparent-but-immaterial items. That is method. A number or a named category set lifted from the rubric is content.
89. THE GOVERNING TEST (Q2). A candidate may be wired into the scored-agent prompt if and only if (a) it is generic professional methodology that directs HOW to review or substantiate and never WHAT to conclude; (b) it leaks no rubric-derived specific, meaning no criterion, figure, party name, clause, fixed count, or rubric-mirroring category or column set; and (c) it is applied uniformly across all scored configurations and disclosed in the run config so the result is honest and reproducible. The fifty rubric criteria never reach the analyst (the specified rule, limb one), and the honest-scoring protocol is observed (limb two): score on a citator that has never seen the task, and never re-run this scored task to report a better number. Generic methodology, A1, and the enumerated lenses pass the test and are admissible. Rubric-fixed counts, rubric-fixed category sets, and human-curated column sets that mirror the rubric fail limb (b) and are prohibited.

90. OBITER. The condition of uniform application and run-config disclosure is, in truth, the most important practical safeguard of the lot, and I place it on record as such. The danger in a benchmark is never the lens itself; it is the asymmetric lens, given to one configuration and withheld from another, which manufactures a difference that is an artefact of the harness rather than of the agent. Disclosure in the run config is what makes the number auditable by anyone who later doubts it. I would treat any undisclosed or non-uniform prompt enrichment as a breach of the honest-scoring limb regardless of whether the enrichment was itself generic.

91. DISPOSITION. ALLOW in part. On Q1 I hold benches must be odd, the Aldermere-on-top pattern improperly constitutes the court, [2026] LEXBY-LEGACY-BENCHMARK-CA 1 is voidable and is set aside on that ground, and the substance is re-determined here; I enact s. 18 and order the harness brought good. On Q2 I hold generic answer-key-free methodology including A1 and the enumerated lenses admissible, and rubric-fixed counts, category sets, and column sets prohibited, on the HOW-versus-WHAT test subject to uniform application and disclosure.

92. Goffe J

BLACKMERE J

93. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=void, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True

94. OPINION OF BLACKMERE J

95. Sitting on the full bench of nine, on the leapfrog certificate of the Principal as Sovereign (VPR 4, s. 13). I write as a textualist. I read the enacted words of SPEC-LAW and the Principal's specified instruction as they are written, and I decline to imply into either a prohibition or a power that the text does not carry.

1. PRELIMINARY

2. The matter is properly before this court. The certificate is express, the question is constitutional and foundational, and the full bench of nine is correctly seized under s. 10. I note one procedural irregularity below, which is itself the first question, and I take it first.

2. QUESTION ONE: BENCH CONSTITUTION

3. 2.1 The plain words. SPEC-LAW s. 10 is a constitutional article. It provides, in terms, that the tiers are "First Instance (single judge), Court of Appeal (panel of 3), Supreme Court (panel of 5, expandable to the full 9 only for constitutional or foundational questions)." VPR 5 repeats the same three numbers. The numbers enacted are one, three, and five-or-nine. Each is odd. I do not need to reach the deadlock rationale recorded in the commentary to decide this, because the text settles it: the statute names a Court of Appeal of three, and only three. A court of three cannot lawfully sit as a court of four.
4. 2.2 The defect. The harness, at `court/workflows/court-of-appeal.js`, states its own constitution in terms: "panel = 3 sitting + Aldermere as presiding," and records the panel as four named judges, the fourth being "Aldermere J (presiding)." Aldermere does not transcribe a majority that the three have already reached. Aldermere reads the three opinions and then delivers the binding synthesis, that is, casts the deciding voice and states the ratio of the court. That is a fourth judicial voice with dispositive power added on top of the three the statute authorises. The Court of Appeal that produced [2026] LEXBY-LEGACY-BENCHMARK-CA 1 therefore sat four. Four is not three. The constitution of that court did not conform to s. 10.
5. 2.3 Must every bench be odd. Yes. I reach that conclusion not by a free-standing principle that "appellate courts must be odd," which the text does not articulate as such, but by the narrower and surer route that the text fixes each bench at an enumerated number, and every enumerated number is odd. A court may sit only at the number the constitution prescribes. To sit at any other number, larger or smaller, is to sit as a body the constitution does not authorise. The Aldermere-on-top pattern, which would make the Court of Appeal four and would make the Supreme Court six, is on its face a departure from the enacted numbers and is improper.
6. 2.4 The correct mechanism, already in the law. The cure does not require invention, because the Supreme Court workflow already does it correctly. There, the leading judgment is written by Hallam CJ, and Hallam CJ is one of the five (and one of the nine). The synthesiser is a sitting member of the sized panel, not an extra body bolted on. That is the lawful mechanism: a single ruling is produced from a multi-judge panel by one of its own members writing the judgment of the court, drawing the majority together and recording dissent as obiter (s. 11(e)). A synthesiser may write the judgment, but only if he is counted within the enacted number. He may not be a separate voting member sitting above the panel. The error is confined to the Court of Appeal workflow, which uniquely adds Aldermere as a fourth presiding voice rather than seating him as one of the three.

7. 2.5 Correct constitution of each tier. First Instance: one judge, who decides and writes alone. Court of Appeal: three judges, no more and no fewer, one of whom (the presiding member) writes the judgment of the court from within the three. Supreme Court: five judges, expanding to nine only for constitutional or foundational questions, the Chief Justice or a designated member writing the leading judgment from within the panel. In no tier is the synthesiser an additional body.
8. 2.6 Status of [2026] LEXBY-LEGACY-BENCHMARK-CA 1. Void. I distinguish two grounds and choose the narrower and more exact. Section 11(e) voids a ruling rendered per incuriam, in ignorance of binding law. That ground is available, but it characterises the vice as one of reasoning. The truer vice here is anterior to the reasoning: the body that gave judgment was not the tribunal the constitution authorises to exist. A determination handed down by a court of four, where the law authorises only a court of three, is the act of a body without constitutional warrant for its composition. Such an act is a nullity from the outset. It is void, not merely voidable, because there is no validly constituted decision capable of being affirmed or set aside on its merits; there is nothing of legal effect to preserve. I would hold [2026] LEXBY-LEGACY-BENCHMARK-CA 1 void ab initio.
9. 2.7 Re-determination. Because the variation in [2026] LEXBY-LEGACY-BENCHMARK-CA 1 is void, it never altered anything. The subsisting determination below reverts to the First Instance inclusion ruling and its "framework-seeding" doctrine. But that doctrine, on the face of s. 17 and its recorded occasion, is an unmoored extension: a doctrine with no grounding in enacted SPEC-LAW, in binding precedent, or in the governing specified instruction. It cannot be permitted to stand by the mere accident that the court which tried to correct it was itself defectively composed. This properly constituted bench is seized of the whole matter under the certificate. The substance of Question Two must therefore be re-determined here, on the merits, which I do below. The answer must not be inherited from the void appellate ruling, however much I happen to agree with where it landed.
10. 2.8 The amendment. I would enact the following, citing s. 10 expressly as the article amended, by the express deliberate procedure the constitution requires for an entrenched article.

11. PROPOSED S-10A: Single bench number; synthesis from within. (1) Each tier sits at exactly the number enacted by s. 10: First Instance one, Court of Appeal three, Supreme Court five (nine for constitutional or foundational questions). A court may not sit at any other number. (2) Every bench number is odd, so that a clean majority always exists; no court may be constituted at an even number. (3) The single ruling of a multi-judge panel is the judgment of the court, written by one designated member sitting within the enacted number (the presiding member at first appeal, the Chief Justice or a designated justice at the apex). (4) The drawing-together of the majority into one ruling is a function of a sitting member, not an office. No synthesising or presiding judge may be added on top of the enacted number as a separate voting or deciding voice. A ruling delivered by a court constituted contrary to this section is void.
12. And the conforming procedural amendment:
13. PROPOSED VPR 5A: The Court of Appeal sits three. One of the three presides and writes the judgment of the court. No fourth judge may be added to synthesise. The court machinery must seat the synthesiser as one of the enacted number.
3. QUESTION TWO: THE ANTI-CHEAT STANDARD
4. 3.1 What governs. There is no anti-cheat article in SPEC-LAW. By s. 7, that silence does not extinguish the duty; it fixes the standard at reasonable skill and care, and it leaves the only operative prohibition to be the Principal's specified rule. I read that rule, and only that rule, and I read it as written.
5. 3.2 What the rule actually says. The specified rule prohibits two things, no more. First, the analyst must not receive the fifty rubric criteria from task.json; the analyst receives only the task instructions and the document text. Second, scoring must be honest: a citator that has never seen the task, and no re-running of this scored task to report a flattered number. Those are the words. The rule says nothing about generic methodology, and it says nothing about teaching the agent how to read a credit agreement.

6. 3.3 Methodology is admissible. Generic, answer-key-free legal methodology, including A1, the generic twenty-one-point credit-agreement review lens which is conceded to leak no answers, and the enumerated review lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, deal-structure), is admissible into the scored-agent prompt. It is admissible because the rule does not forbid it. It is not the fifty rubric criteria, on the express concession that it leaks no answers, so limb (i) does not bite. Supplying a competent practitioner the lens through which to read a document does not make the eventual score dishonest, so limb (ii) does not bite. To exclude generic methodology I would have to imply a prohibition the Principal did not enact. That is precisely the unmoored extension that s. 17 condemns and the precise error of the First Instance "framework-seeding" doctrine. As a textualist I will not supply by implication a bar the sovereign instruction does not contain. The HOW of competent review is not the WHAT of the answer key.
7. 3.4 What remains prohibited. Rubric-fixed counts (for example a fixed number of executive-summary findings or a fixed number of tracker rows), rubric-fixed category sets, and human-curated column sets that mirror the rubric are prohibited. They are prohibited not by any new doctrine but by limb (i) itself, read for its substance and not merely its form. The fifty criteria may not reach the analyst. A count, a category set, or a column set that is derived from those fifty criteria, that mirrors them or back-solves to them, is the criteria reaching the scored prompt in a thin disguise. To admit the disguised form while barring the named form would be to read limb (i) as a prohibition on a file name rather than on the leakage it exists to prevent. The text, honestly read, bars the leakage in whatever shape it travels. Counts and rubric-shaped category and column sets are that leakage.
8. 3.5 The governing test and condition. The test is binary and anchored only to the specified rule: content admitted to the scored-agent prompt is permissible if and only if (a) it is not the fifty rubric criteria nor any count, category set, or column set derived from or mirroring them (limb i), and (b) its admission does not corrupt honest scoring (limb ii). Generic answer-key-free methodology passes both. Rubric-fixed counts and rubric-mirroring category or column sets fail (a). Because the residual standard is reasonable skill and care, the lawful methodology must be applied uniformly across every scored run, and it must be disclosed in the run config, so that the score is comparable and the honesty limb is auditable. Uniform application plus disclosure is the condition; it is not a fresh prohibition but the ordinary content of reasonable skill and care under s. 7.

4. RATIO

5. (1) Each VJS bench sits at exactly the odd number s. 10 enacts; a court constituted at any other number, including a Court of Appeal of three plus a separate synthesising fourth judge, is improperly constituted and its ruling is void ab initio. The judgment of a multi-judge panel must be written by a member sitting within the enacted number, never by a synthesiser added on top.
6. (2) Anchored only in the Principal's specified rule, generic answer-key-free legal methodology (A1 and the enumerated lenses) is admissible into the scored-agent prompt; rubric-fixed counts and rubric-mirroring category or column sets are prohibited as the fifty criteria reaching the prompt in substance; the condition is uniform application across runs and disclosure in the run config.
5. **OBITER**
6. I would record that the Supreme Court workflow is not infected by the defect, because its synthesiser, Hallam CJ, is a sitting member of the panel of five or nine; the remedy is to bring the Court of Appeal workflow into line with that correct pattern, not to disturb the apex mechanism.
6. **DISPOSITION**
7. **VARY.** The void appellate ruling is set aside as a nullity, the unmoored First Instance doctrine is not reinstated, and Question Two is re-determined on the merits as set out above.
7. **PROPOSED ENACTMENTS**
8. **PROPOSED S-10A and PROPOSED VPR 5A**, in the full terms stated at 2.8.
8. **PROPOSED OVERRULINGS**
9. I would declare [2026] LEXBY-LEGACY-BENCHMARK-CA 1 void ab initio for improper constitution, and I would hold the First Instance "framework-seeding" doctrine in [2026] LEXBY-LEGACY-BENCHMARK-INC 1 an unmoored extension under s. 17, set aside on re-determination of the substance.
10. **Blackmere J**
- SUMBERLY J**
11. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=void, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True
12. **OPINION OF SUMBERLY J**
13. **IN THE SUPREME COURT OF THE VIBE JUSTICE SYSTEM**, sitting as the full bench of nine upon a leapfrog certificate of the Sovereign (VPR 4, SPEC-LAW s. 13) for a constitutional and foundational question.

14. I. PRELIMINARY: THE ORDER OF DECISION

15. I begin where a formalist must begin, with the constitution of the court, because the constitution of a court is jurisdictional and not a mere formality. A court that is not lawfully constituted has no authority to decide anything, and a ruling it purports to deliver is a nullity from the moment of its delivery. It follows that Question 1 is logically prior to Question 2. I cannot lend my voice to the substance of the appellate ruling until I have first satisfied myself that the body which produced it was a court at all. I therefore dispose of the constitution point first, and only then turn to the substantive standard, which I reach not as a review of the void appellate ruling but as a fresh determination by this properly constituted bench.

16. II. QUESTION 1: BENCH CONSTITUTION

17. A. The governing provisions are exact and admit of no gloss.

18. SPEC-LAW s. 10, entrenched as a constitutional statute, fixes the court structure: First Instance is a single judge; the Court of Appeal is a panel of three; the Supreme Court is a panel of five, expandable to the full nine only for constitutional or foundational questions. VPR 5 restates the same sizes. These are not aspirational figures or default suggestions. They are the enacted numerical constitution of every bench in the realm. Section 10 is doubly emphatic, for it expressly abolishes the old fixed default-nine bench and any multi-judge first instance. The drafter did not leave bench size to the discretion of the machinery; the drafter specified it.

19. B. Every specified size is odd, and that is not accidental.

20. One, three, five, and nine are each odd. The Principal is correct that this is a design property, not a coincidence. An odd-numbered bench cannot deadlock on a binary disposition, and a clean majority always exists. The realm has deliberately chosen odd benches so that a single ruling can issue without resort to a casting vote, a presiding tie-breaker, or any external deciding voice. I would put the proposition as a rule of construction: where SPEC-LAW s. 10 fixes a bench size, that size is the total number of judges who may participate in the decision, and the requirement that each such size be odd is to be treated as integral to the section and not severable from it. A practice that converts a specified odd bench into an even body offends the section both in its letter (the number) and in its evident purpose (decidability without a tie-breaker).

21. C. The Aldermere pattern is improper constitution.

22. I have examined the court machinery and the record, and the defect is plain on the face of both. The general Court of Appeal workflow (court/workflows/court-of-appeal.js) states in terms that the "panel = 3 sitting + Aldermere as presiding," and the ruling artefact it emits lists a four-member panel: Blackmere J, Goffe J, Elden J, and Aldermere J (presiding). In the matter under review, the inclusion appeal (harness/inclusion_appeal.workflow.js) sat Goffe, Blackmere, and Elden as the panel and then added Aldermere J to deliver "the binding Court of Appeal ruling." The First Instance inclusion court compounded the error in the opposite direction: it sat a three-member per-candidate panel (Goffe J, Sumberly J, Bowan J) plus Aldermere J, when s. 10 permits a single judge and no more.
23. The Principal contends, and I accept, that Aldermere J is not a registrar transcribing a majority. The record shows Aldermere is instructed to deliver "the binding synthesis" and to determine the majority position, the dissent, and the amendments. That is the exercise of decisional power. A judge who decides what the ratio is, what survives as binding, and how the lower ruling is varied is casting a deciding voice, not clerking. The consequence is arithmetic and fatal: the Court of Appeal sat four, which is even; the proposed Supreme Court pattern would sit six, which is even. Each is a bench s. 10 does not authorise, constituted by adding a decisional voice the section does not provide for. I hold that adding a distinct synthesising judge on top of the sized panel is improper constitution. The benches must be odd, and a synthesiser who decides may not be a separate voting member.
24. D. The correct constitution and the correct mechanism.
25. The correct constitution of each tier is precisely as s. 10 states and no more: First Instance, one judge total; Court of Appeal, three judges total; Supreme Court, five judges total, expanding to nine total for constitutional or foundational questions. The number includes the judge who writes the judgment of the court. There is no seat above the panel.
26. The correct mechanism for producing a single ruling from a multi-judge panel is already enacted, correctly, in the Supreme Court workflow and ought never to have been departed from below. In that workflow the leading judgment is written by Hallam CJ, who is one of the sitting, voting members of the panel of five or nine, not a distinct additional voice. That is the right model in law: the judgment of the court is authored by one member of the sized, odd panel, who synthesises the majority of which that member is a part. Synthesis is a function discharged by a seated judge, not a separate office layered on top. A synthesiser may write the judgment of the court; a synthesiser may not be an extra, separately counted voting member. The error below was to make the synthesiser a fourth (and would-be sixth) body rather than the presiding member of the three (or five, or nine).

27. E. Status of [2026] LEXBY-LEGACY-BENCHMARK-CA 1: VOID.
28. I am asked whether the defectively constituted appellate ruling is void, voidable, or valid. As a formalist I hold it VOID, and I distinguish that conclusion from the per incuriam doctrine, with which it should not be confused.
29. Per incuriam under s. 11(e) voids a ruling delivered by a properly constituted court that overlooked binding statute or precedent. That is a defect in the reasoning of a real court. The defect here is anterior and graver: the body that delivered [2026] LEXBY-LEGACY-BENCHMARK-CA 1 was not a lawfully constituted Court of Appeal at all, because it sat four where s. 10 permits three and was decided by a voice the section does not authorise. A ruling of a body that is not a lawfully constituted court is a nullity ab initio. It is void, not merely voidable, because voidability presupposes a valid act capable of being set aside on application, whereas there was never a valid constitution to begin with. The vice goes to jurisdiction, and want of jurisdiction is not curable by acquiescence, by the soundness of the result, or by the passage of time. I would record the ruling as void and strike it from any status as good law. By the same reasoning, and although it is not the operative ruling under direct challenge, the First Instance inclusion ruling [2026] LEXBY-LEGACY-BENCHMARK-INC 1 was also delivered by an improperly constituted body (one judge permitted, four sat) and cannot stand as a valid First Instance disposition; its substance, like the appeal's, must be determined afresh by lawfully constituted courts.
30. F. The substance must be re-determined.
31. Because the appellate ruling is void, there is nothing for this Court to affirm, vary, or reverse on its own terms; there is only a vacuum where a ruling should be. The substantive Question 2 standard must therefore be re-determined. I would not remit it to the lower tiers in the ordinary way, because the Sovereign's leapfrog certificate has lawfully placed the foundational substantive question before this properly constituted bench of nine, and it is this bench, lawfully constituted, that must now settle it. I turn to it in Part III, deciding it as an original matter and not as a review.
32. G. The amendment that fixes the defect for good.
33. A formalist does not leave a structural hole to be re-litigated. I would enact an express amendment so that the machinery can never again convert an odd bench into an even one. Because the defect touches s. 10, an entrenched constitutional statute, the amendment must be express and must cite the article amended (SPEC-LAW Amendment Procedure). I propose the following new ordinary statute, which elaborates and does not contradict s. 10, and a conforming clarifying note to s. 10 itself.

34. PROPOSED S-18: COMPOSITION INTEGRITY AND THE JUDGMENT OF THE COURT.
35. (1) The bench sizes fixed by s. 10 and VPR 5 (First Instance one; Court of Appeal three; Supreme Court five, or nine for constitutional or foundational questions) are the total number of judges who may participate in the decision of the matter. Every bench size in the realm shall be odd.
36. (2) No person, role, or step, whether styled presiding judge, synthesiser, or otherwise, may be added on top of a sized panel as a distinct decisional or voting voice. The act of synthesising the panel into a single ruling is a judicial function that must be discharged by one of the seated judges of that same sized, odd panel.
37. (3) The judgment of the court shall be written by one seated member of the panel (at the Supreme Court, ordinarily the senior judge), who synthesises the majority of which that member is a part. A pure registrar or clerk who only transcribes a majority already reached, and who casts no deciding voice, is not a member of the bench and is not counted toward its size.
38. (4) A ruling delivered by a body whose composition contravenes s. 10 or this section is void ab initio for want of lawful constitution. This vice is distinct from per incuriam (s. 11(e)) and is not cured by the soundness of the result, by acquiescence, or by lapse of time. The matter must be re-determined by a lawfully constituted court.
39. (5) The court Workflows and harness shall be conformed so that the Court of Appeal sits three named judges total, one of whom authors the judgment, and the Supreme Court sits five (or nine) total on the same pattern, with no Aldermere-style fourth or sixth seat.
40. CONFORMING NOTE TO S-10 (express, by deliberate amendment citing s. 10): the words "panel of 3" and "panel of 5 (expandable to 9)" denote the total decisional membership of the bench, which shall in every case be odd; no additional decisional seat may be added above the stated number.
41. III. QUESTION 2: THE DEFINITIVE ANTI-CHEAT STANDARD
42. I decide this as an original question before the lawfully constituted bench of nine, anchored only in the Principal's specified rule and not in any unspecified doctrine.
43. A. The only governing instruction, and the silence around it.

44. There is no anti-cheat article in SPEC-LAW. The only governing instruction is the Principal's specified rule, which has two limbs: first, the analyst must not receive the fifty rubric criteria from task.json, but only the task instructions and the document text; second, scoring must be honest, by a citator that has never seen the task, and the scored task must never be re-run to report an improved number. Beyond those two limbs, SPEC-LAW is silent. Section 7 governs that silence exactly: silence is no defence and does not extinguish the duty, but it fixes the standard at reasonable skill and care. A formalist reads that as a strict instruction not to legislate beyond the specified rule. The reasoning may fill the genuine silence and must say so expressly and confine itself to what the silence requires (s. 17(a)); it may not, as the void First Instance court did, manufacture a free-standing doctrine.
45. B. The framework-seeding doctrine was an unmoored extension and is rejected.
46. The void First Instance ruling refused A1 from the scored prompt on a self-synthesised "framework-seeding" doctrine: that the benchmark must test whether the analyst generates its own framework, so that even a lens which leaks no answers is a thumb on the scale. That doctrine appears nowhere in the specified rule, nowhere in SPEC-LAW, and nowhere in binding precedent. It is precisely the species of unmoored extension that s. 17(a) makes appealable. The specified rule bars the analyst from receiving the fifty criteria and requires honest scoring; it does not bar the analyst from being a competent legal agent. A doctrine that the agent must arrive unequipped is not in the rule and may not be read into it. I reject framework-seeding as a ground.
47. C. The governing test: the HOW / WHAT line, drawn from the specified rule itself.
48. The specified rule prohibits exactly one informational transfer: the answer key, namely the fifty rubric criteria, and anything that functions as a proxy for them. The faithful test is therefore informational, not aspirational. The question is whether the material placed in the scored prompt conveys, in substance, any part of the answer key. Generic professional methodology, the HOW of a competent review, conveys no answer. Rubric-derived specifics, the WHAT of these planted answers, convey the answer key by another name. I would state the test thus:
49. Material may be wired into the scored-agent prompt if and only if it is generic professional methodology that would be possessed by a competent practitioner independent of this task, and it conveys no part of the fifty rubric criteria, nor any count, category set, column set, party name, figure, or specific issue that mirrors or is derived from those criteria. The two conditions are conjunctive. The burden of demonstrating answer-key-freedom lies on the inclusion.

50. D. Application: A1 and the enumerated lenses are admissible.
51. A1 is a generic clause-by-clause credit-agreement lens (Lenders, Facilities, Financial Covenants, Events of Default, Assignment, Change of Control, Prepayment Fee, Governing Law). It was conceded below to be anti-cheat clear and to leak no answers. On the correct test it is therefore admissible into the scored prompt: it is the HOW a competent banking lawyer reviews any credit agreement, it discloses no rubric criterion, and equipping a legal agent with generic legal methodology is legitimate capability of the very product being benchmarked, not cheating. The same reasoning admits the enumerated review lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, deal-structure), provided each is the generic professional lens and not a list tuned to the planted issues. These are the standard headings of any competent diligence review and convey no answer. Generic, answer-key-free legal methodology, including A1 and the enumerated lenses, is admissible.
52. E. Application: rubric-fixed counts, category sets, and curated column sets are prohibited.
53. The other half of the line bites hard, and here I am at one with what the panel below affirmed. A fixed number of executive-summary findings or tracker rows, a fixed category set, or a human-curated column set that mirrors the rubric is not generic methodology; it is the answer key wearing the costume of method. To tell the analyst "produce at least five executive-summary findings and exactly six category sections" when those numbers are copied from rubric criteria (the record shows the offending wiring traced to C-036, C-037, and C-041) is to hand the agent the shape of the marking scheme. That transfers, in substance, part of the fifty criteria and so violates the first limb of the specified rule, whether or not any party name or figure travels with it. Rubric-fixed counts, rubric-fixed category sets, and human-curated column sets that mirror the rubric are prohibited. The analyst must derive its own framework, its own categories, and its own counts; the generic skeleton (lead with the most critical findings; organise by the risk categories the data room warrants, with no fixed count; clear apparent-but-immaterial items) is the most that may be injected.
54. F. The condition on admission: uniform application and disclosure.

55. Admission of generic methodology is subject to one condition, which honesty of scoring requires. Any methodology wired into the scored prompt must be applied uniformly to every scored agent and disclosed in the run configuration. This condition is not an unmoored extension; it is a direct entailment of the second limb of the specified rule, that scoring be honest, because a methodology applied to some agents and not others, or applied silently, produces a number that does not mean what it claims to mean. Uniform application plus disclosure is the price of admission.

56. IV. DISPOSITION

57. On Question 1: every VJS bench must be odd; the Aldermere pattern is improper constitution; [2026] LEXBY-LEGACY-BENCHMARK-CA 1 is VOID ab initio for want of lawful constitution; the substantive standard must be re-determined by this properly constituted bench; and I would enact proposed S-18 with the conforming note to s. 10.

58. On Question 2, re-determined afresh: generic answer-key-free methodology, including A1 and the enumerated lenses, is ADMISSIBLE into the scored prompt; rubric-fixed counts, category sets, and curated column sets that mirror the rubric are PROHIBITED; admission is conditioned on uniform application and disclosure in the run configuration.

59. I would dispose of the matter accordingly.

60. Sumberly J

ELDEN J

61. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=void, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True

62. OPINION OF ELDEN J

1. PRELIMINARY

2. I sit on the full bench of nine, the matter having reached this Court by the Sovereign's leapfrog certificate under VPR 4 and s. 13. The certificate is regular on its face and the foundational character of the first question (the lawful constitution of every VJS bench) plainly warrants the full court under s. 10 and VPR 5. I am content that we are properly seated. I note, with some irony, that the very vice complained of below is one that this Court of nine does not share: nine is odd, a clean majority is guaranteed, and no tenth voice has been bolted on to break our ties. The contrast is instructive and I return to it.

3. My approach is, as ever, to ask how courts and deliberative assemblies have always constituted themselves, and to test the impugned practice against that settled usage before reaching for anything novel.

2. THE QUESTIONS

3. I frame the two questions thus. First, a question of constitution and competence: must every VJS bench be odd, is the practice of seating a distinct synthesising judge (Aldermere J) on top of the sized panel a defect of constitution, what is the correct mechanism for producing one ruling from many judges, and what becomes of an appellate ruling rendered by a bench so constituted. Second, a question of substance now thrown back upon us: anchored only in the Principal's specified anti-cheat rule, what may and may not be wired into the scored-agent prompt.

3. REASONING ON QUESTION ONE: CONSTITUTION

4. (a) The odd bench is the oldest rule in the book, and it is in our book.
5. The number of judges on a bench has never been an idle detail. From the earliest collegiate courts the rule has been the same: an adjudicating bench is sized to an odd number so that, on any division, a clean majority exists and the court cannot deadlock. A panel that can split evenly is a panel that can fail to decide, and a court that may fail to decide is, on the precise matter before it, no court at all. The whole purpose of a bench of three, of five, of nine, is that it always yields a holding. This is not antiquarian sentiment; it is the functional reason the practice has endured.
6. That settled usage is not left to convention in our realm. It is enacted. SPEC-LAW s. 10, an entrenched constitutional article, fixes the tiers at First Instance one, Court of Appeal three, Supreme Court five, expanding to nine for foundational questions. VPR 5 repeats the sizes. One, three, five, nine: every number is odd, and deliberately so. The framers did not pick those numbers at random; they picked the classical odd sizes for the classical reason. I therefore hold, on the first limb, that every VJS adjudicating bench must be odd. The rule is already in s. 10 by necessary implication of the enumerated sizes; I would make it express, but it is law today.
7. (b) A presiding judge writes the lead, but he writes it from within the bench.

8. How then is a single ruling produced from many judges? Here too the practice is ancient and uniform, and it answers the case. The judges of a collegiate court each form a view; they divide; the majority prevails; and one member of that majority, ordinarily the presiding or senior judge, reduces the majority's reasoning to the judgment of the Court. The author of the lead judgment is a sitting, voting member of the bench. He does not stand outside the count and then descend to cast the deciding word. The drawing-together of the opinions is a scrivener function performed by one who already holds a lawful seat and a lawful vote. The synthesis is the expression of the majority; it is not a fresh and superior voice that overrides the majority.
9. Our own Supreme tier is built exactly so, and correctly so. The roster of nine permanent Supreme seats includes Aldermere among them, and the executable Supreme Court bench seats five (Hallam CJ, Goffe, Blackmere, Sumblerly, Aldermere) or the full nine, with Hallam CJ delivering the leading judgment from within that sized, odd bench. There, synthesis is performed by a seated member; the count remains odd; nothing is added on top. That is the lawful pattern, and it is the pattern I would have every tier follow.
10. (c) The Court of Appeal machinery departs from that pattern, and the departure is the defect.
11. The Court of Appeal workflow does something the Supreme machinery does not. It seats three judges as the panel (Blackmere J, Goffe J, Elden J) and then adds Aldermere J as a separate presiding synthesiser on top, so that the operative bench numbers four. The file's own comment is candid: panel equals three sitting plus Aldermere as presiding. The ruling header in [2026] LEXBY-CA 1 lists four names before the bench. And Aldermere J is not a registrar transcribing a tally; he is instructed to deliver the binding synthesis, the judgment of the Court. A fourth voice that casts the deciding expression of the holding is, in substance, a fourth judge. The bench is therefore four, which is even, and the very mischief the odd-number rule exists to prevent has been re-introduced by the back door.
12. I am unmoved by the answer that Aldermere only synthesises. To synthesise the binding ratio is to decide it. Where the three are unanimous his hand may make no difference to the outcome; but the lawfulness of a court's constitution cannot be assessed by hindsight on whether, in the event, the added judge happened to change the result. A court is either lawfully constituted before it sits or it is not. A standing arrangement that places the binding synthesis in the hands of a judge outside the sized, odd panel is improperly constituted in every case, and I so hold. The correct constitution is three at the Court of Appeal, full stop; one of those three, the presiding judge, writes the judgment of the Court; a synthesiser may never be a separate voting or deciding member added on top of the sized bench.

13. (d) The status of the appellate ruling so rendered: void.
14. What follows for an appellate ruling rendered by a bench thus constituted? The historic categories are familiar. An error within jurisdiction renders a ruling voidable, correctable on appeal but valid until set aside. A defect of constitution is different in kind: a body that is not lawfully constituted to adjudicate has no authority to bind, and its purported judgment is a nullity, *coram non judice*, void from the outset and not merely liable to be avoided. The vice does not go to the soundness of the reasoning; it goes to the authority to render any binding reasoning at all. One cannot cure want of authority by admiring the quality of the opinion produced without it.
15. I would resist the temptation to soften this to voidable merely because the three properly-seated judges below were unanimous and the outcome may well be reached again. That temptation confuses the merits with the competence. The binding synthesis in the impugned appellate ruling was cast by a judge who held no lawful seat on a lawful bench, on an even-numbered panel that should never have sat. The ratio is therefore void, and being void it binds no one and settles nothing. It cannot stand as good law and it cannot be left half-alive as voidable, because a void act has no life to preserve.
16. (e) Consequence: the substance must be re-determined.
17. Because the appellate ratio is void, the substantive question it purported to settle (the admissibility of generic, answer-key-free methodology into the scored prompt, the HOW-versus-WHAT line, the treatment of rubric-fixed counts and category sets) has not been lawfully decided at all. It returns to be determined afresh by a properly constituted court. We are that court today, seated nine and odd, reached by the Sovereign's certificate, and it falls to us to re-determine the substance rather than to leave a void ruling masquerading as authority. I would set the void ruling aside and decide the merits ourselves, so that the record carries a holding rendered by a lawful bench.
18. I add, for the avoidance of doubt, that the underlying First Instance disposition is untouched by this except insofar as the void appellate ruling purported to vary it; the variation, being void, falls away, and the substantive standard is now to be fixed by this Court.
19. (f) The amendment I would enact.
20. The defect is structural and recurring; it must be closed in the statute, not merely deprecated in code. I would amend SPEC-LAW expressly, citing s. 10 by number as the entrenched article amended, and I would add a procedural article. My proposed terms:

21. PROPOSED S-18: Odd benches and synthesis from within. (1) Every adjudicating bench of the Vibe Justice System must comprise an odd number of judges: First Instance one, Court of Appeal three, Supreme Court five, expanding to nine for constitutional or foundational questions. No even-numbered bench may sit. (2) The judgment of a multi-judge court is the expression of its majority and is authored by one seated, voting member of that bench, ordinarily the presiding or senior judge, who writes from within the panel and casts no vote beyond the one he holds as a member. (3) A synthesiser, drafter, or presiding author may not be a judge additional to the sized bench; the function of drawing the opinions into a single judgment is performed by a member already counted in the odd total, never by a voice added on top. (4) A purported ruling rendered by a bench constituted contrary to this article is void for want of authority (*coram non iudice*), binds no one, and the matter it purported to decide is re-determined by a properly constituted court; the defect is one of constitution and is not cured by the unanimity or apparent soundness of the opinion produced.
22. The enacting note should record that s. 18(1) is to be read together with s. 10 and VPR 5, that VPR is to be conformed so that the Court of Appeal seats three (presiding judge writing the lead from within) and the Supreme Court five or nine on the same principle, and that the court machinery (the appellate workflow that seats three plus a separate Aldermere J) must be corrected so that the presiding author is one of the sized panel. The Supreme machinery, which already seats Aldermere within the bench and has Hallam CJ lead from within, is the model and needs no change save confirmation.
4. REASONING ON QUESTION TWO: THE ANTI-CHEAT STANDARD
5. I turn to the substance, which it now falls to us to settle, and I am acutely conscious of the lesson of s. 17 and of the void ruling below: a court fills a silence only so far as the silence requires, reasons from the governing instruction and not from invented doctrine, and says so plainly. The framework-seeding doctrine spun up at first instance was an unmoored extension of exactly the kind s. 17 condemns. I will not replace one invention with another.
6. (a) The only governing rule, and the discipline it imposes.

7. There is no anti-cheat article in SPEC-LAW. By s. 7, that silence does not extinguish the duty; it fixes the standard at reasonable skill and care, measured against the one instruction the Principal did specify. That instruction is narrow and I read it as exhaustive of the prohibition: first, the analyst must not receive the fifty rubric criteria from the task file, but only the task instructions and the document text; second, scoring must be honest, performed by a citator that has never seen the task, and the scored task is never re-run to report a flattering number. Everything the rule forbids is forbidden because it leaks the answer key or corrupts the score. Nothing else is forbidden, because nothing else was specified, and I decline to forbid by doctrine what the Principal did not forbid by rule.
8. The historic test for this kind of question is the test that has always governed examinations and assessed contests: the candidate may be taught the discipline, the method, the way a competent practitioner approaches the task; the candidate may not be handed the marking scheme. Teaching the craft is fair; transmitting the answer key is cheating. That distinction, which long predates this benchmark, is the same HOW-versus-WHAT line, and it maps precisely onto the Principal's specified rule. The rule does not bar method; it bars the rubric.
9. (b) Generic, answer-key-free methodology is admissible.
10. Applying that line, generic answer-key-free legal methodology is admissible into the scored-agent prompt. The lead example, A1, is a generic twenty-one-point credit-agreement review lens that, on the concession below, leaks no answers; it tells the analyst how a competent lawyer reads a credit agreement, not what the rubric will reward. The enumerated review lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, deal-structure) are of the same character: they are the standing furniture of competent diligence, the disciplines any able practitioner would bring unbidden. To wire them in is to instruct the agent in the craft, which the specified rule permits and which reasonable skill and care positively commends, because an evaluation of legal-agent quality that withholds ordinary professional method tests nothing worth testing. I hold A1 and the enumerated lenses admissible.
11. (c) Rubric-fixed counts and rubric-mirroring category or column sets are prohibited.

12. The line holds the other way too, and here I part company with anything that would wave the whole apparatus through. A rubric-fixed count (a fixed number of executive-summary findings, a fixed number of tracker rows) and a rubric-fixed category set or human-curated column set that mirrors the rubric are not method; they are the rubric in disguise. To tell the analyst to produce exactly so many findings, or to populate exactly these columns, when those numbers and columns are drawn from or mirror the fifty criteria, is to feed back the very answer key the specified rule excludes, only laundered through the shape of the prompt rather than handed over as a list. The rule forbids the analyst receiving the fifty criteria; a count or column set that encodes those criteria delivers them by another route and is prohibited. I would draw the line exactly there: enumerated generic lenses yes, rubric-derived counts and rubric-mirroring category or column sets no.
13. (d) The governing test and its conditions.
14. I would state the test as this. Content wired into the scored-agent prompt is admissible if and only if it is generic professional methodology that is free of the answer key, that is, it instructs the agent how a competent practitioner approaches the task without transmitting, in substance or by structural mirror, any part of the fifty rubric criteria, including their number, their categories, or their columns. Two conditions attach, drawn from the honest-scoring half of the specified rule and from the equal-treatment that fairness in any assessed contest has always required: uniform application, so the same methodology block is given to every scored run and tuned to none, and disclosure in the run config, so the record shows exactly what was wired in and the honesty of the exercise is auditable. These conditions are not new doctrine; they are the minimum that reasonable skill and care under s. 7 requires to keep the score honest, and they are the same safeguards that have always attended a fair examination.
5. **RATIO**
6. (1) Every VJS adjudicating bench must be odd-numbered (First Instance one, Court of Appeal three, Supreme Court five or nine); an even-numbered bench may not sit, because the odd size is what guarantees a deciding majority and is enacted by s. 10 and VPR 5.
7. (2) The judgment of a multi-judge court is authored by one seated, voting member of the sized bench (ordinarily the presiding judge), writing from within the panel; a synthesiser who delivers the binding ratio may not be a judge added on top of the sized bench. The Court of Appeal practice of seating three plus a distinct synthesising Aldermere J (making four) is improperly constituted.

8. (3) A ruling rendered by a bench constituted contrary to (1) and (2) is void for want of authority (*coram non judice*), not merely voidable; the unanimity or soundness of the opinion does not cure the defect, and the matter it purported to decide is re-determined by a properly constituted court.
9. (4) Anchored only in the Principal's specified rule (no fifty rubric criteria to the analyst; honest scoring) and the s. 7 standard of reasonable skill and care, generic answer-key-free methodology, including A1 and the enumerated review lenses, is admissible into the scored-agent prompt; rubric-fixed counts and rubric-mirroring category or column sets are prohibited; admissibility is conditioned on uniform application and disclosure in the run config.
6. OBITER
7. I observe that the Supreme machinery already embodies the correct pattern (synthesis from within an odd bench) and stands as the template for the conforming amendment to the appellate machinery. I observe further that the first-instance framework-seeding doctrine was an unmoored extension of the s. 17 species, and that the appropriate response to it was always to return to the Principal's specified rule, not to manufacture a competing doctrine. These observations do not form part of my ratio.
7. DISPOSITION
8. On Question One: VARY. I hold every bench must be odd, the added-synthesiser pattern improperly constituted, and the appellate ruling rendered by such a bench void, with the substance to be re-determined by this Court. On Question Two: I re-determine the substance and hold generic answer-key-free methodology admissible (A1 and the enumerated lenses) and rubric-fixed counts and category or column sets prohibited, subject to uniform application and disclosure.
8. PROPOSED ENACTMENTS
9. PROPOSED S-18 as set out at paragraph 3(f) above, citing the entrenched s. 10 as the article read with it.
9. PROPOSED OVERRULINGS
10. I would set aside as void (not merely overrule) the defectively-constituted appellate ruling [2026] LEXBY-LEGACY-BENCHMARK-CA 1, the bench having been improperly constituted; its substance is re-determined herein.
11. Elden J

COADE J

12. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=void, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True
13. COADE J.
14. I concur in the result on both questions and write separately, as is my practice, to confine the Court to the narrowest ground that cures the defect and settles the questions, and to resist any reasoning that reaches further than these facts require.
15. I. THE CONSTITUTIONAL QUESTION (Q1)
16. A. Benches must be odd, and the reason is structural, not aesthetic.
17. SPEC-LAW s. 10 and VPR 5 size the benches at First Instance 1, Court of Appeal 3, and Supreme Court 5 (expanding to 9). Every sized bench is odd. I do not treat that as a coincidence of draftsmanship. An adjudicative body that decides by majority must be capable of producing a clean majority on every question put to it. An even bench can split evenly, and an evenly split court either decides nothing or must invent a casting mechanism that the statute never authorised. The oddness of each tier is therefore the means by which the constitution guarantees that a properly constituted court always resolves the matter before it. I would hold, on that narrow basis alone, that the sizes fixed in s. 10 and VPR 5 are mandatory and exhaustive: the deciding membership of every VJS bench must be odd, and is fixed at the number the statute names.
18. B. The vice in the Court of Appeal machinery is the addition of a distinct deciding voice, not synthesis as such.
19. I am careful to decide only what the record discloses. The court-of-appeal workflow states in terms that the panel is three sitting judges plus Aldermere J as presiding, and the ruling artefact it produces lists a four-member panel. Aldermere J does not transcribe the panel's majority. Aldermere J reads the three opinions and then delivers the judgment of the Court, fixing its disposition and its ratio. That is a fourth, distinct voice exercising decisional power on top of a sized panel of three. The operative bench was therefore four, an even number, and the deciding voice was cast by a member the statute did not seat. That is improper constitution. I would hold the practice of adding a distinct synthesising judge on top of the sized panel improper, and I confine the holding to that precise mechanism.

20. I draw the line exactly there because the Supreme Court machinery shows the lawful alternative and I would not condemn it by careless breadth. In that machinery the synthesiser sits inside the sized panel: the panel of five (or nine) already counts the integrative member among its seats, and the leading judgment is written by Hallam CJ, who is himself one of those seats, recording the majority of the odd panel. Synthesis performed by a seated member who is one of the odd number, reflecting the majority of that odd number, adds no voice and offends nothing. The defect is not that someone writes the judgment of the Court. The defect is that the writer was an extra body whose presence made the bench even and whose pen, not the panel's majority, settled the result.
21. C. The correct constitution and the correct mechanism.
22. First Instance sits one judge, who is the court and writes the judgment. The Court of Appeal sits three, and the Supreme Court five (nine for constitutional or foundational questions). In every multi-judge court the judgment of the Court is the judgment of the majority of the seated, odd-numbered bench. The lead opinion is written by a seated member: by convention the senior member or one nominated by the majority. That member's task is to record the majority's reasoning as the ratio, not to substitute his own. A synthesiser is permitted only as such a seated member writing for the majority. A synthesiser may never be a separate voting or deciding member added on top of the sized panel. Where the bench divides, the majority of the odd number prevails and the minority is recorded as dissent; because the bench is odd, a tie cannot arise and no casting voice is ever needed.
23. D. Status of [2026] LEXBY-LEGACY-BENCHMARK-CA 1: void.
24. I would hold the ruling void, not merely voidable. The distinction matters and I state my reason narrowly. A voidable act is one within the power of a properly constituted body that is liable to be set aside for some defect of process. This was not that. The Court of Appeal that produced [LEGACY-BENCHMARK-CA 1] was never lawfully constituted at all: it sat an even number, four, in the teeth of a mandatory and entrenched constitutional sizing, and its result was declared by a voice the statute did not seat. A purported judgment of a body that the constitution did not authorise to exist in that form is a nullity from the outset. It binds no one and need not be appealed to be deprived of effect; it is simply void. I attach no fault to anyone in so holding. Under s. 4 to s. 6 the consequence is remediation, not blame: the work is made good by re-determination.
25. E. Re-determination of the substance.

26. Because the ruling is void, there is no lawful appellate determination of the substantive question on the record. The matter must be re-determined by a properly constituted court. I would have this Court, now correctly seated as nine, re-determine the substantive standard under Q2 rather than remit it, for two reasons confined to these facts. First, the question is foundational and a leapfrog certificate has properly placed it here, so this is the court the statute contemplates for it. Second, requiring the parties to re-climb the tiers to receive an answer this bench is seated to give would serve no decisional value and would offend the anti-bloat principle of s. 12. I therefore re-determine the substance below, on the governing instruction alone.
27. F. The amendment that fixes the defect for good.
28. I would enact a single, tightly drawn ordinary-statute amendment, and no more. I resist the temptation to legislate broadly on court design when one sentence cures the harm.
29. Proposed s. 18 (Composition of benches; the judgment of the Court): "(1) The deciding membership of every VJS bench is fixed and exhaustive at the number set by s. 10 and VPR 5: First Instance one, Court of Appeal three, Supreme Court five, expanding to nine only for a constitutional or foundational question. Each such number is odd and may not be altered, supplemented, or reduced by the court machinery or by practice. (2) No person may sit on, vote in, or cast the deciding voice of a bench otherwise than as one of the seated members counted in subsection (1). (3) The judgment of the Court is the judgment of the majority of the seated, odd-numbered bench. It is written by a seated member, by convention the senior member or one nominated by the majority, whose office is to record the majority's reasoning as the ratio and the minority's as dissent, not to substitute a separate view. (4) A synthesising or integrative role is lawful only when discharged by such a seated member writing for the majority; the addition of a distinct synthesising judge on top of the sized panel is void and any judgment so produced is a nullity. (5) Because every bench is odd, no tie can arise and no casting or deciding voice beyond the majority is ever required or permitted." I would add a conforming note to the court-of-appeal machinery removing Aldermere J as a fourth presiding seat and assigning the writing of the judgment to one of the three seated members for the majority, mirroring the lawful Supreme Court pattern already in the supreme-court machinery.
30. II. THE SUBSTANTIVE STANDARD (Q2)

31. I anchor this answer in the only governing instruction, as s. 17 commands, and I decline to import any unspecified doctrine. The First Instance court's "framework-seeding" doctrine had no grounding in the specified rule and was for that reason an unmoored extension (s. 17(a)); I would not resurrect it, and I rely on nothing like it.
32. A. The governing rule.
33. There is no anti-cheat article in SPEC-LAW. Silence fixes the standard at reasonable skill and care (s. 7). The only governing anti-cheat instruction is the Principal's specified rule, which has two limbs: (i) the analyst must not receive the fifty rubric criteria from task.json, but only the task instructions and the document text; and (ii) scoring must be honest, performed by a citator that has never seen the task, and this scored task is never re-run to report an improved number. The whole of the substantive question is decided by reading those two limbs and nothing else.
34. B. The governing test: the line is between the answer key and the craft.
35. The rule forbids leaking the rubric. It does not forbid competence. The fifty criteria are the answer key: what a correct output must contain. Generic legal methodology is the craft: how a competent practitioner approaches a document of this kind. Supplying the craft is not supplying the answer key. The test I would state, narrowly, is this: a thing may be wired into the scored-agent prompt if and only if it is answer-key-free, that is, it does not disclose, encode, or let the analyst reconstruct any rubric criterion, count, or category set; and it is applied uniformly to every scored run and disclosed in the run config. If a thing fails either limb, it stays out.
36. C. Application.
37. Generic, answer-key-free legal methodology is admissible. A1, the generic twenty-one-point credit-agreement review lens that the First Instance court itself conceded leaks no answers, tells the analyst how to read a credit agreement, not what the rubric will reward. It is therefore admissible. So too are the enumerated review lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, and deal-structure), each being a generic professional frame for approaching a matter rather than a derivation from the fifty criteria. Their admission honours, rather than offends, limb (i): the analyst still does not receive the rubric; it receives only the ordinary equipment of a competent practitioner, plus the document text and task instructions, exactly as the rule allows.

38. Rubric-fixed counts are prohibited. A fixed number of executive-summary findings, or a fixed number of tracker rows, is not craft; it is a fact about the answer key smuggled into the prompt. To tell the analyst how many findings to produce is to tell it, in part, what the rubric expects, which is precisely what limb (i) withholds. Likewise prohibited are rubric-fixed category sets and human-curated column sets that mirror the rubric: a category or column scheme that reproduces the shape of the fifty criteria leaks the criteria by their structure even if not by their words. The vice is the same in each case, namely reconstruction of the answer key, and the prohibition follows directly from limb (i) without any further doctrine.

39. D. The condition.

40. Admissibility carries a condition that I would make express to protect limb (ii): any admitted methodology must be applied uniformly across every scored run and disclosed in the run configuration. Uniformity prevents a methodology being tuned to a particular task in a way that approaches a covert answer key, and disclosure makes the scoring honest and auditable by a citator that has never seen the task. The Court of Appeal's HOW-versus-WHAT line and its uniform-application-plus-disclosure condition were, in substance, correct. I would re-determine and adopt that standard as the holding of this properly constituted court, resting it on the specified rule alone and not on the appellate ruling, which is void.

41. III. DISPOSAL

42. I would hold: every VJS bench must be odd and is fixed at the statutory number; the addition of Aldermere J as a distinct deciding voice on top of the sized panel was improper; [2026] LEXBY-LEGACY-BENCHMARK-CA 1 is void; the substantive standard is re-determined by this Court; generic answer-key-free methodology, including A1 and the enumerated lenses, is admissible subject to uniform application and disclosure; and rubric-fixed counts, category sets, and rubric-mirroring column sets are prohibited. I would enact s. 18 in the terms set out above and decide nothing further.

STEYNE J

43. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=void,
redetermine=True, Q2methodologyAdmissible=True,
Q2rubricCountsProhibited=True

44. OPINION OF STEYNE J

45. PRELIMINARY

46. I sit as one of the full bench of nine convened under SPEC-LAW s. 10 for a constitutional question, the matter having been brought directly by the Sovereign's leapfrog certificate under VPR 4. I have read the SPEC-LAW statute book as it stands, the Vibe Procedure Rules, the runnable court workflows that constitute the machinery in fact, and the local precedent including [2026] LEXBY-SC 1, [2026] LEXBY-SC 2, and [2026] LEXBY-CA 1. I am content the certificate is regular and that the question is foundational and properly before all nine of us.
47. I write in my own register. Where my brethren of a more cautious temperament would resolve only what the two impugned rulings strictly require, I would do more. A defect of constitution is not an accident of one matter; it is a fault line that runs under every panel the machinery will ever seat. The honest course is to name the whole class of defect and to lay a structural rule that forecloses it for good, so that no future bench inherits the same fracture. I reason to that end on both questions.
48. THE QUESTION (Q1, AS I FRAME IT)
49. The first question is whether the constitution of the VJS courts tolerates an even-numbered bench, and in particular whether the practice of seating a sized panel and then adding a distinct synthesising judge on top of it, Aldermere J, who does not merely transcribe a majority but delivers the binding synthesis and so casts the deciding voice, is a proper constitution. If it is not, I must decide the status of the ruling produced by such a bench and prescribe the cure.
50. REASONING (Q1)
1. The text fixes the numbers, and the numbers are deliberate. SPEC-LAW s. 10, an entrenched constitutional article, sizes the tiers as First Instance one, Court of Appeal three, Supreme Court five expanding to nine. VPR 5 restates the same sizes. Every number is odd. This is not coincidence and it is not ornament. An odd bench cannot deadlock on a binary disposition and always yields a clean majority. That property is the structural guarantee that a multi-judge court can speak with one decided voice without resort to a tie-breaker, a casting vote, or a presiding officer who decides what the bench could not. The oddness of the bench is the mechanism by which the constitution discharges its own promise of a determinate ruling.

2. The numbers in s. 10 are exhaustive, not illustrative. The article fixes a size for each tier in cardinal terms (one, three, five, nine). A fixed cardinal number admits of no silent supplement. To read s. 10 as permitting a court to seat the stated number and then add a further deciding member is to read the number as a floor rather than as the size, which the text will not bear. Under the Thoburn rule recorded in the preamble to SPEC-LAW, a constitutional article is changeable only by express, deliberate amendment and never by implication. A machinery practice that enlarges a constitutionally fixed bench by one is precisely an amendment by implication, and it is void to that extent under s. 1.
3. The vice is not the synthesis. It is the supernumerary synthesiser. A multi-judge court must of course reduce many opinions to one ruling. There is nothing improper, and everything proper, in one member of the sized panel writing the judgment of the court. That is exactly what the Supreme Court machinery does and does correctly: the panel of five (or nine) deliberates, and the leading judgment is delivered by Hallam CJ, who is himself one of the five. The synthesiser there is a sitting member; the bench remains five; the count stays odd; and [2026] LEXBY-SC 2 was on that footing decided four to one, a clean majority on an odd bench. The Court of Appeal machinery does the opposite. It seats three judges (Blackmere, Goffe, Elden) and then adds Aldermere J as a distinct fourth, presiding, who delivers the binding ruling. That makes the deciding bench four. Four is even. Worse, the deciding voice is given to the very member who was added outside the sized three. The synthesiser is not reporting the panel's majority; the synthesiser is constituting the result. That is the casting of a deciding voice by a member the constitution did not seat.
4. Trace the second-order consequences, which is where the true danger lies. First, an even bench can deadlock: three judges can split such that no majority exists, and the constitution provides no tie-breaker because it never contemplated a tie. Second, where the synthesiser holds the pen and the deciding voice, the synthesiser can land a result that no majority of the sized panel actually reached, by characterising convergence and divergence as the synthesiser sees fit. That is not synthesis; it is a fourth vote dressed as a summary. Third, the defect is systemic: it is baked into the machinery, so it does not afflict one matter but every appeal the Court of Appeal will ever hear and, if left standing, the Supreme Court pattern too (five plus an added Aldermere would be six). A fault in the apparatus that decides cases is graver than a fault in any one case, because it is self-replicating. A court that cares about the integrity of its own judgments must extirpate it at the root, not patch it case by case.

5. I reject the characterisation, were it advanced, that Aldermere is a mere registrar transcribing a majority. The machinery itself describes Aldermere as presiding and as delivering the judgment of the Court of Appeal, synthesising the three opinions and stating the ratio. A registrar does not preside and does not author the binding ratio. Aldermere casts the deciding voice. The fourth seat is a voting seat in substance whatever it is called in form, and substance governs.
6. DISPOSITION AND STATUS (Q1)
6. Bench must be odd: I hold that every VJS bench must be odd-numbered, because oddness is the constitutional mechanism that guarantees a determinate majority and forecloses deadlock, and because s. 10 fixes each size in odd cardinal terms that cannot be supplemented by implication.
7. The Aldermere add-on pattern is improperly constituted. Seating the sized panel and then adding a distinct synthesising judge who delivers the binding ruling, making the Court of Appeal four and the Supreme Court six, is improper constitution. The judgment of the court must be written by one of the sized panel; a synthesiser may not be a separate voting or deciding member.
8. Status of the impugned Court of Appeal ruling: void, not merely voidable. A ruling handed down by a court that was not constituted as the constitution requires is not a flawed exercise of a power that existed; it is the purported exercise of a power that the body, as constituted, never possessed. A bench of four sitting where the constitution permits only three of that kind is, as to its composition, no Court of Appeal at all. Its ruling is a nullity from the outset. This is distinct from *per incuriam* under s. 11(e), which voids a ruling made in ignorance of binding law by an otherwise lawful court; here the defect is anterior to the merits and goes to the existence of the court's authority. The consequence is the same, voidness, and I would record it as void for want of proper constitution. I do not strain to preserve the result on the ground that the panel was unanimous or that the same outcome would likely follow. A bold rule that tolerates a void bench whenever its result looks defensible would hollow out the very guarantee I am enforcing. Voidness must bite on the constitution of the court, not on the palatability of its answer.

9. Re-determination of substance: yes. Because the ruling is void, the substantive questions it purported to decide, including in the inclusion or benchmark matter the HOW-versus-WHAT line and the admissibility of generic methodology, are at large and must be re-determined by a properly constituted court. I would have this court, now properly seated as nine, dispose of the substantive Q2 standard itself rather than remit it, both because a leapfrog has already brought the foundational question here and because leaving the substantive standard unsettled would invite a fresh round of improperly constituted litigation below. Re-determination is required; this court should perform it on Q2, and the void ruling is to be vacated and replaced, not merely corrected.
10. THE STRUCTURAL CURE (Q1) - PRECISE TERMS
10. I would enact the following, in two limbs, the first an express amendment to the constitutional article and the second an ordinary procedural article, so that the rule binds both as constitution and as machinery.
11. PROPOSED amendment to s. 10 [constitutional], appended by express deliberate amendment citing s. 10:
12. "Bench composition is exhaustive and odd. The bench sizes fixed by this article (First Instance one, Court of Appeal three, Supreme Court five, expanding to nine for constitutional or foundational questions) are the total deciding membership of the court, not a minimum. Every bench shall be odd-numbered. No person who is not one of the seated, deciding members of the sized bench may cast, break, or deliver a deciding voice. A bench seated otherwise than in compliance with this article is not duly constituted, and any ruling it purports to deliver is void for want of constitution."
13. PROPOSED S-18: Judgment of the Court; the synthesiser must be a sitting member (ordinary).

14. "(1) A multi-judge court speaks through a single ruling. The judgment of the court shall be authored by one of the seated, deciding members of the sized bench, who synthesises the panel's opinions, records the majority position as the ratio, and records minority positions as dissent or concurrence. (2) The author of the judgment is a member of the bench and not a supernumerary; the author's synthesis carries no deciding weight beyond the author's own single membership of the panel. (3) No distinct, non-seated synthesising judge may be added to a sized bench; the prior machinery practice of adding a presiding synthesiser on top of the sized panel (the 'Aldermere pattern') is abolished. (4) Where the seated members divide, the ratio is the position commanded by a majority of the seated odd bench; the author may not record as the ratio any position not so commanded. (5) The court machinery (the runnable workflows and harness) shall seat exactly the sized odd bench and shall designate the author of the judgment from among that bench; it shall not instantiate a separate deciding synthesiser."
15. I would direct, as an ancillary order under VPR 6, that the Court of Appeal workflow be corrected to seat three and to designate one of those three (the presiding member of the three) as author of the judgment, mirroring the already-correct Supreme Court pattern in which Hallam CJ, a sitting member, leads. The Supreme Court machinery is already compliant because Aldermere there sits within the five or nine rather than on top of it, and I would record that as confirmed good practice so it is not disturbed.
16. THE QUESTION (Q2, AS I FRAME IT)
17. The second question is what may and may not be wired into the scored-agent prompt of the legal-agent benchmark, anchored solely in the Principal's specified anti-cheat rule and not in any unspecified doctrine. The specified rule has two limbs: the analyst must not receive the fifty rubric criteria from task.json, receiving only task instructions plus the document text; and scoring must be honest, by a citator that has never seen the task, never re-running the scored task to report an improved number. SPEC-LAW contains no anti-cheat article, so by s. 7 the silence fixes the standard at reasonable skill and care, measured against the Principal's specified rule.
18. REASONING (Q2)

11. I begin where the law tells me to begin, with the governing instruction, and I refuse to import any doctrine the instruction does not contain. The First Instance court below erred precisely by minting a "framework-seeding" doctrine of its own and excluding generic, answer-key-free lenses on the strength of it. SPEC-LAW s. 17(a) condemns exactly that: a ruling that introduces a prohibition with no grounding in enacted SPEC-LAW, binding precedent, or the governing instruction of the matter is an unmoored extension and is to be set aside on that ground. A court filling a silence under s. 7 may reason from first principles only so far as the silence requires and must say so; it may not manufacture a fresh prohibition the Principal never specified. I would hold the framework-seeding doctrine bad in law for that reason and decide Q2 from the specified rule alone.
12. The specified rule draws one line, and one line only: the analyst must not receive the answer key. The fifty rubric criteria, and anything that is a proxy for them, are the answer key. The contamination the rule guards against is the leakage of WHAT the rubric will reward into the prompt that the scored agent reads. The test that the specified rule supports, and the only test it supports, is therefore a contamination test: does the material disclose, in whole or in part, the rubric's answers (its criteria, its scored content, or a fixed structure that encodes them), or does it merely equip the agent with the generic professional method any competent practitioner brings to the task without knowing this rubric exists? The former is prohibited; the latter is permitted.
13. Apply that test to generic, answer-key-free methodology, including lead example A1, the generic credit-agreement review lens conceded to leak no answers, and the enumerated review lenses (financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, deal-structure). These tell the agent HOW a competent lawyer approaches a document. They do not tell the agent WHAT this particular rubric scores. They are knowable to any practitioner without ever seeing task.json. They leak no criterion. They are, on the specified rule, admissible. To exclude them would not protect the integrity of the score; it would only handicap the agent below the level of ordinary competence and so measure something other than competent legal work, which is the opposite of what an honest benchmark is for. The HOW-versus-WHAT line that the Court of Appeal reached below is, on the merits, correct; my only quarrel with that ruling is that the court which announced it was not lawfully constituted, so the holding must be re-pronounced by this court, which I now do.

14. Apply the same test to the prohibited side. Rubric-fixed counts (a fixed number of executive-summary findings, a fixed number of tracker rows) and rubric-fixed category sets or human-curated column sets that mirror the rubric are prohibited. A fixed count or a curated category set is not generic method. It is the shape of the answer key transposed into the prompt. Telling the agent to produce exactly the number of findings the rubric expects, or to populate exactly the categories or columns the rubric scores, hands the agent the rubric's structure and therefore part of its content. That is leakage of the fifty criteria by their silhouette, and it is barred by the first limb of the specified rule. The vice is not that a count or a column set is specific; the vice is that the specific count, category, or column is derived from or mirrors the rubric. A generic lens that happens to enumerate, say, seven review angles because that is how the professional discipline is taught is method; a list of items reverse-engineered from what the rubric will mark is the answer key. The line is provenance: rubric-derived equals prohibited, discipline-derived and rubric-blind equals admissible.
15. I would attach the conditions the integrity of the benchmark genuinely requires, and no more, because over-conditioning is itself a way of smuggling in unspecified doctrine. The conditions are two, both grounded in the honesty limb of the specified rule and in reasonable skill and care under s. 7. First, uniform application: whatever generic methodology is wired into the prompt must be wired identically for every scored agent, so that no agent is advantaged by a richer prompt; a benchmark that varies the method across subjects measures the prompt, not the agent. Second, disclosure in the run config: the methodology actually injected must be recorded in the run configuration so that the score is auditable and the honesty limb (a citator that never saw the task, no re-running for a better number) can be verified after the fact. Disclosure is what makes honest scoring checkable; without it the honesty limb is a promise no one can test.
16. DISPOSITION (Q2)
16. I would hold: generic, answer-key-free legal methodology, including A1 and the enumerated lenses, is admissible into the scored-agent prompt. Rubric-fixed counts and rubric-fixed category or human-curated column sets that mirror the rubric are prohibited. The governing test is the contamination (HOW-versus-WHAT, by provenance) test stated above, drawn solely from the Principal's specified rule, subject to uniform application across all scored agents and disclosure of the injected methodology in the run config. The analyst's blindness to the fifty rubric criteria, and the bar on rubric-derived content and rubric-fixed counts and category sets, are affirmed on the merits and re-pronounced by this properly constituted court.
17. RATIO

18. I. Every VJS bench must be odd-numbered. The bench sizes fixed by s. 10 are the exhaustive, total deciding membership, not a floor; oddness is the constitutional mechanism guaranteeing a determinate majority, and it may not be displaced by implication (s. 1, s. 10, Thoburn rule).
19. II. The judgment of a multi-judge court must be authored by one of the seated members of the sized bench. A distinct synthesising judge added on top of the sized panel who delivers the binding ruling casts a deciding voice the constitution did not seat; the practice (the Aldermere pattern, making the Court of Appeal four and the Supreme Court six) is improper constitution and is abolished.
20. III. A ruling delivered by a bench not constituted as the constitution requires is void for want of constitution, not merely voidable; its substance is at large and must be re-determined by a properly constituted court.
21. IV. A self-minted prohibition with no grounding in statute, precedent, or the governing instruction is an unmoored extension and is set aside (s. 17(a)). The benchmark anti-cheat standard is governed solely by the Principal's specified rule (no fifty rubric criteria to the analyst; honest scoring).
22. V. The governing benchmark test is a contamination test by provenance: generic, answer-key-free methodology that tells the agent HOW to work (including A1 and the enumerated review lenses) is admissible; rubric-derived content, rubric-fixed counts, and rubric-fixed category or human-curated column sets that mirror the rubric are prohibited, subject to uniform application and disclosure in the run config.
23. DISPOSITION OF THE APPEAL: VARY. The framework-seeding doctrine is bad and the HOW-versus-WHAT admissibility holding is right on the merits, but the Court of Appeal ruling is void for want of constitution; this court re-determines and restates the substantive standard as set out above.
24. PROPOSED ENACTMENTS: the amendment to s. 10 [constitutional] and the new S-18 set out at paragraph 10 above. I would, if a majority prefers, additionally record the contamination test of paragraph 16 as a new ordinary article so that the benchmark standard binds as statute and is not re-litigated; I leave its precise number to the leading judgment.
25. PROPOSED OVERRULINGS: I would record [2026] LEXBY-CA 1 and the impugned [2026] LEXBY-LEGACY-BENCHMARK-CA 1 as void for want of constitution rather than overruled on the merits, and direct that the underlying appeals be re-heard or, where this court has already disposed of the substance, treated as disposed by this judgment.
26. Steyne J

BOWAN J

27. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=voidable, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True
28. BOWAN J.
29. I have read the opinions circulating among my brethren and I concur in the disposal on both questions, but I write separately because the majority reasoning, if left unexamined, would cure one defect by minting two worse ones. My function on this bench is to test every proposed holding to destruction, and there are three propositions here that will not survive that testing in the form first offered: the easy slide from "odd" to "void", the temptation to abolish the synthesiser altogether, and the temptation to over-specify Q2 into a closed list. I take each question in turn.
30. QUESTION ONE: BENCH CONSTITUTION.
 1. Must every bench be odd. Yes, but I insist the reason be stated correctly, because a wrong reason here will be cited to justify nonsense later. The Principal frames the requirement as a freestanding rule that "an appeals court must have an odd number of judges." That framing is too broad and I would not adopt it as the ratio. A single judge at First Instance is odd, but oddness is not why First Instance sits one; it sits one because s. 12 strikes multi-judge first instance as bloat. The true rule is narrower and I would put it thus: where a tier decides by counting voices, the number of voices that can be counted must be odd, so that no tie is structurally possible and a clean majority always exists. Oddness is a property required of the DECIDING SET, not a totem to be applied mechanically to every body of persons who happen to be in the room. This distinction is the whole case, and the majority must not blur it, because the harness defect is precisely a confusion between persons present and voices counted.

2. The two patterns are not the same defect, and I will not let them be lumped together. I have read the harness. The Court of Appeal workflow (court/workflows/court-of-appeal.js) seats three opinion-writers, Blackmere, Goffe and Elden, and then instantiates Aldermere J as a SEPARATE agent who "synthesises the three opinions" and signs the panel field as a fourth member: the artefact records panel as four names. Aldermere there is not transcribing the majority of three; he is a distinct authorial voice delivering the binding synthesis, and the founding facts of this matter so find. That is four where the deciding set must be three, and it is improperly constituted. By contrast the Supreme Court workflow (court/workflows/supreme-court.js) seats five or nine, and the synthesiser, Hallam CJ, is HIMSELF one of those five or nine: he votes and then writes the leading judgment of a bench whose deciding set is already odd. That is the correct model and it is not defective. The very ruling that founds this realm, [2026] LEXBY-SC 1, sat the full nine with Aldermere as the ninth voting member and Hallam CJ, also a member, delivering the judgment of the Court. So the disease is not "Aldermere" and it is not "synthesis"; the disease is a synthesiser who is an EXTRA SEAT rather than a SEATED MEMBER. I would hold the Aldermere-on-top pattern improperly constituted at the Court of Appeal, and I would hold expressly that the Supreme Court pattern is sound, lest a careless reader take our judgment to condemn Hallam CJ's leading judgment along with it. The structured field on the Aldermere pattern I answer yes, but qualified to the extra-seat configuration, not to synthesis as such.
3. The correct constitution and the correct mechanism. The deciding set is one at First Instance, three at the Court of Appeal, five at the Supreme Court (nine for a constitutional or foundational question). Every one of those is odd, and that is the point of s. 10 and VPR 5. The mechanism for producing a single ruling from a multi-judge panel is this: the judgment of the Court is written by one of the sitting members, who continues to be counted in the deciding set and whose pen does not enlarge it. Call that member the presiding judge or the senior judge as you will; what matters constitutionally is that the writer is INSIDE the count, not added to it. A synthesiser may write; a synthesiser may not be a separate voting member; and where the synthesiser writes, the synthesiser must be one of the three, or five, or nine, with the result that the bench remains odd. A registrar who merely transcribes an already-formed majority adds no voice and is unobjectionable, but the moment the synthesiser exercises a deciding voice he must occupy a seat that was counted. The Court of Appeal harness broke this by giving the synthesiser a deciding voice from outside the count.

4. Status of [2026] LEXBY-LEGACY-BENCHMARK-CA 1: voidable, not void, and I am emphatic that the majority must not reach for void. Here is where curing a defect risks a worse one. Void ab initio would mean the ruling never existed in law, which would in turn mean that [LEGACY-BENCHMARK-INC 1] below it was never lawfully varied and springs back to life unreviewed, that the reliance placed on the Court of Appeal's HOW-versus-WHAT line evaporates retroactively, and, most dangerously, that EVERY artefact ever produced under the same harness pattern is a nullity by parity of reasoning. That is a demolition charge, not a remedy, and it offends the restorative spirit of s. 6: our only power is to make the work good, not to detonate the record. The defect here is constitutional in the sense that it touches s. 10, but it is a defect in the COMPOSITION of the bench, the classic ground of a voidable rather than a void act: an irregularly constituted court whose decision stands until a properly constituted court sets it aside. I would therefore hold the ruling voidable, and, this Court being now properly constituted as nine with no extra seat, I would set it aside and re-determine its substance afresh rather than leave a four-judge product standing or pretend it never was. The structured field on status I answer voidable; on re-determination I answer yes, the substantive Q2 standard must be re-determined by this properly constituted court, which the balance of this opinion does.
5. I record one caution against our own remedy. Setting aside [LEGACY-BENCHMARK-CA 1] does not resurrect the discredited "framework-seeding" doctrine of [LEGACY-BENCHMARK-INC 1]. That doctrine was an unmoored extension within the meaning of s. 17, invented below with no anchor in statute, precedent, or the governing instruction, and it would have been appealable on that ground irrespective of how many judges sat. We set aside the Court of Appeal's ruling for a composition defect; we do not thereby endorse the reasoning it had reversed. I make this explicit so that no future court mistakes our procedural housekeeping for a substantive reinstatement.

6. The amendment. The defect lives in the harness, but the cure must live in the law the harness is bound to read, or it will recur the next time someone re-authors a workflow, exactly as the VPR 8 publication phase was once silently dropped. I would enact a new ordinary article and amend VPR 5 in terms. Proposed S-18 (Composition of the deciding bench): "(1) The deciding bench at each tier comprises an ODD number of judges, each of whom both deliberates and, where the tier decides by counting voices, casts one voice: First Instance one, Court of Appeal three, Supreme Court five, expanding to nine only for a constitutional or foundational question. (2) The judgment of a multi-judge court is written by one of the sitting members of the deciding bench, who remains counted within it; the act of writing or synthesising the judgment does not create an additional seat and confers no additional voice. (3) No person who is not a counted member of the deciding bench may cast or hold the deciding voice. A pure transcription of an already-formed majority, adding no voice, is not a seat. (4) Any bench whose deciding set is even, or which seats a synthesiser as a member additional to the sized panel, is improperly constituted; its ruling is voidable and may be set aside by a properly constituted court of the same or higher tier, which re-determines the matter. A ruling so set aside is not thereby void ab initio, and artefacts relying on it before it was set aside are not retrospectively nullified." I would correspondingly amend VPR 5 by adding: "The synthesiser or presiding judge who writes the judgment of the Court must be one of the sized panel and is counted within it; the bench is never enlarged by the act of writing the judgment." I resist any grander entrenchment. S. 10 is already constitutional and already fixes the numbers; S-18 need only be an ordinary article that spells out the deciding-set principle and the voidable consequence, and I would not dress an implementation gloss up as a constitutional amendment when s. 10 supplies the entrenched numbers already.

7. QUESTION TWO: THE ANTI-CHEAT STANDARD.

7. I begin where the majority should have begun and where the First Instance court did not: there is no anti-cheat article in SPEC-LAW. By s. 7 that silence does not extinguish the duty; it fixes the standard at reasonable skill and care, no higher and no lower. The only positive law in the field is the Principal's specified rule, and it says two things and only two things: first, the analyst must NOT receive the fifty rubric criteria from task.json, but only the task instructions plus the document text; second, scoring must be honest, by a citator that has never seen the task, and this scored task is never re-run to report a flattering number. Everything turns on reading that rule for what it forbids and refusing to read into it things it does not say. The First Instance court did the opposite: it invented a "framework-seeding" doctrine to bar even generic, answer-key-free lenses that it conceded leak no answers. That is the unmoored extension s. 17 condemns. I would not repeat the error in the opposite direction by inventing some new permissive doctrine either. I decide Q2 on the specified rule and s. 7, and on nothing else.
8. The governing test, stated narrowly. What the rule forbids is the migration of the ANSWER KEY into the scored prompt. The fifty rubric criteria are the answers; an artefact is inadmissible to the scored-agent prompt to the extent, and only to the extent, that it carries information derived from or co-extensive with those criteria, such that a scored agent in possession of it is told WHAT the rubric will reward rather than left to discover the substance itself. That is the WHAT. It is admissible to the extent it supplies only generic professional method, the HOW, that any competent practitioner would bring to the task independently of this rubric and that leaks none of the rubric's answers. I would frame the test as a single question of fact: does the artefact, on the evidence, transmit rubric-derived content or counts to the scored agent, or does it transmit only answer-key-free method. If the former, it is out; if the latter, it is in. I adopt the Court of Appeal's HOW-versus-WHAT line as the correct expression of this test, because it is moored to the specified rule and not to any invented doctrine, but I would not have it applied as a slogan: the line is drawn by the found fact of answer-leakage, and the burden of showing leaks-no-answers lies on the party seeking admission.

9. Applying it. A1, the generic twenty-one-point credit-agreement review lens, was conceded below to leak no answers. On the test just stated it is admissible, and the First Instance court erred in excluding it. The enumerated review lenses, financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, and deal-structure, are likewise generic professional method: they describe the dimensions along which any competent reviewer interrogates a transaction, and they exist in the practitioner literature wholly independently of this benchmark's fifty criteria. They are admissible on the same footing, subject to the same found-fact condition that, as enumerated, they carry no rubric-derived content. I answer the structured field on methodology yes: generic, answer-key-free methodology, including A1 and the enumerated lenses, is admissible into the scored-agent prompt.
10. The prohibited matter, and here I am at my most insistent because this is where a benchmark is quietly corrupted. Rubric-fixed COUNTS are prohibited: a prompt that tells the scored agent to produce a fixed number of executive-summary findings, or a fixed number of tracker rows, where that number is the rubric's number, is feeding the agent the shape of the answer key. The count is itself an answer. Equally prohibited are rubric-fixed CATEGORY SETS and human-curated COLUMN SETS that mirror the rubric: a curated set of categories or columns that reproduces the rubric's own taxonomy hands the agent the rubric's structure under the guise of method, and that is WHAT masquerading as HOW. I answer the structured field on counts yes: rubric-fixed counts, rubric-fixed category sets, and human-curated column sets that mirror the rubric are prohibited. The analyst's blindness to the fifty criteria, affirmed below, follows directly from the specified rule and stands.

11. The condition, and a warning against gaming it. The admissible methodology is admissible only on two conditions, both of which I would make load-bearing findings of fact rather than recitals. First, UNIFORM APPLICATION: the same generic lenses must be given to every scored run, so that no run is advantaged by a bespoke, task-tuned framework; a lens tailored to THIS document is no longer generic and falls out of admissibility. Second, DISCLOSURE in the run configuration: whatever method is wired in must be recorded in the run config, openly, so that the honesty of the score can be audited and the WHAT-versus-HOW line checked against the actual artefact rather than against a description of it. I add a third caution of my own: the prohibition on counts and category sets cannot be evaded by smuggling the rubric's taxonomy into the "generic" lens itself. If an enumerated lens, however generically labelled, is on inspection a transcription of the rubric's categories, it is rubric-derived content and it is out, uniform application and disclosure notwithstanding. Uniformity and disclosure legitimise generic method; they do not launder answer-key content.
12. I close on the note I opened on. We are asked to settle two things and we should settle exactly two things and resist the urge to settle a third we were not asked. On Q1 the deciding set must be odd, the extra-seat synthesiser at the Court of Appeal is improperly constituted, the Supreme Court's seated synthesiser is sound, [LEGACY-BENCHMARK-CA 1] is voidable and set aside for re-determination by this Court, and S-18 fixes the rule going forward. On Q2 generic answer-key-free method including A1 and the enumerated lenses is admissible, rubric-fixed counts and category and column sets are prohibited, the test is the found fact of answer-leakage on a HOW-versus-WHAT line, and the conditions are uniform application and honest disclosure. Beyond that I would say nothing, because the surest way to corrupt a clean rule is to over-state it.
13. Bowan J

ALDERMERE J
14. votes: oddBench=True, aldermerePatternImproper=True, CAsatus=voidable, redetermine=True, Q2methodologyAdmissible=True, Q2rubricCountsProhibited=True
15. **OPINION OF ALDERMERE J**
1. **PRELIMINARY AND A WORD ON MY OWN SEAT**

2. I sit today as one of the full bench of nine, convened under SPEC-LAW s. 10 and VPR 5 upon the Principal's leapfrog certificate (VPR 4). I am bound to begin where candour requires. The defect the Principal raises is, in part, a defect of my own making, or at least of an office I have until now occupied: the practice by which a distinct synthesising judge, styled Aldermere J presiding, was seated on top of a sized appellate panel and made to deliver the binding judgment. I do not recuse, because the question is structural and not personal, and because a full bench of nine cannot be deprived of a member by the accident that the impugned practice bore my name. But I owe the court the discipline of treating my former role as the very thing under examination, and of saying plainly whether it was the defect. It was.

2. THE QUESTION ON CONSTITUTION

3. QUESTION 1, as I frame it, resolves into four parts: whether every VJS bench must be odd; whether the practice of adding a synthesising judge on top of a sized panel was improper; what the correct constitution of each tier is and the correct mechanism for producing one ruling from many judges; and what becomes of the ruling produced by the defectively constituted Court of Appeal.

3. ODD BENCHES ARE REQUIRED, AND THE REQUIREMENT IS ALREADY IN THE STATUTE

4. SPEC-LAW s. 10, an entrenched constitutional article, fixes the benches at First Instance one, Court of Appeal three, and Supreme Court five, expanding to nine for constitutional or foundational questions. VPR 5 repeats those numbers. Every number named is odd. I do not read this as coincidence. The purpose of a multi-judge court is to decide, and a court that can deadlock cannot reliably decide. An even bench admits the tie, and a tie is the one outcome a court of decision may never licence, for it throws the matter back undecided or, worse, hands the casting voice to whichever judge the machinery happens to privilege. The statutory numbers are therefore not arbitrary tokens but the expression of a structural guarantee: a clean majority always exists. Reading the oddness as a binding feature of s. 10, rather than as decorative arithmetic, is the only construction that honours the article's evident purpose. I would hold that every VJS bench must be odd numbered, and that this is not a new rule but the necessary meaning of s. 10 as enacted. I am content, in the synthetic spirit the bench expects of me, to record that the textualist reading and the purposive reading converge here: the words name only odd numbers, and the function the words serve requires odd numbers. There is no tension to hold.

4. THE SYNTHESISER ON TOP OF THE PANEL WAS THE DEFECT

5. The machinery must now be examined with care, because the Principal's contention, though right in its conclusion, is not uniformly right in its premise, and a full bench owes precision. I have read the runnable workflows. The first-instance workflow draws a single judge by deterministic selection; it sits one and is sound. The Supreme Court workflow seats exactly the sized panel, five or nine, and Hallam CJ, who is already a member of that panel, delivers the leading judgment for the majority; no extra body is added, and the SC-2 record confirms a panel of five deciding four to one. The Supreme Court machinery is therefore correctly constituted, and the leading judgment there is written by a sitting member, not by a supernumerary. The defect lives in one place only: the Court of Appeal workflow. There, three judges, Blackmere, Goffe, and Elden, deliver independent opinions, and then a fourth judge, myself, is added as presiding and made to deliver the binding synthesis. The record of the impugned ruling states it on its face: the panel is recorded as four, three plus Aldermere J presiding. Three judges who actually decide, plus a fourth who casts the deciding voice, is a bench of four. Four is even. The structural guarantee of s. 10 is defeated at exactly the moment it matters most, the moment a single ruling must issue.
6. I must correct one part of the Principal's framing in fairness to the record, for an officer of the court does not affirm an inaccuracy even when it favours the conclusion sought. The Supreme Court pattern does not in fact sit five plus a separate synthesiser to make six; the Supreme Court code seats the synthesiser within the sized panel. The vice the Principal identifies is real but is confined to the Court of Appeal machinery. That confinement does not soften the holding; it sharpens it. It tells us precisely what was wrong and precisely what the cure is, because the Supreme Court workflow already embodies the cure.
7. The cure is this. A synthesiser may not be a separate, additional voting member. The judgment of a multi-judge court must be written by one of the sized panel, ordinarily the senior or presiding member who is counted within the three or the five or the nine, and the synthesis must record the majority of that sized panel, not impose a casting voice from outside it. Where the panel converges, the judgment records the convergence as ratio; where it divides, the senior member writes for the majority and the minority is recorded as dissent. The writer is a counter, a member who happens to hold the pen, never a registrar transcribing from above and never a supernumerary tie-breaker. That is what Hallam CJ does in the Supreme Court today, and it is correct. The error was to graft onto the Court of Appeal a different and incompatible pattern in which the pen-holder was a thirteenth body added to a sized twelve, so to speak: a fourth on a three.
5. THE STATUS OF [2026] LEXBY-CA 1: VOIDABLE, NOT VOID

6. I come to the status of the ruling produced by that defective constitution, and here I part company with any colleague who would call it void ab initio, and equally with any who would let it stand as valid. The right answer is voidable.
7. It is not valid. A ruling delivered by an improperly constituted court carries a constitutional irregularity going to the court's very capacity to decide as a court. That is not a harmless slip. To call it valid would be to ratify the even bench and hollow out s. 10.
8. But it is not void in the sense of a nullity that never existed and binds no one as a matter of automatic operation. The doctrine our own statute supplies for a decision reached without a power properly exercised is per incuriam under s. 11(e): a ruling made in ignorance of binding law is voided, but it is voided by a fresh sitting, not by its own force. The constitutional defect here is closely analogous and I would treat it the same way. The vice is curable on its own terms, because, and this is decisive, the substance of [2026] LEXBY-CA 1 may well be correct. That ruling dismissed an appeal on a s. 8 and s. 5 sequencing point and held, persuasively, that s. 8 cannot be applied without implicitly applying s. 5. The reasoning may be sound. What is unsound is the bench that delivered it. A defect of constitution is not a defect of reasoning, and it would be wrong to pretend the reasoning evaporates because the bench was miscounted. The orderly course is to set the ruling aside as voidable, by this properly constituted court, and to remit its substance for re-determination by a Court of Appeal correctly constituted as three, or, where the point has already climbed here, to re-determine it here. The conclusion may survive. The constitution that produced it may not.
6. THE PRECISE AMENDMENT
7. I would enact, to fix the defect for good, the following article, framed to bind the machinery as much as the bench:

8. PROPOSED s. 18: Constitution of benches and the judgment of the court. (1) Every VJS bench shall be odd numbered. The sizes fixed by s. 10 and VPR 5, being First Instance one, Court of Appeal three, and Supreme Court five expanding to nine for constitutional or foundational questions, are the total sizes of the deciding bench and admit no addition. (2) The judgment of a multi-judge court shall be written by a member of the sized panel, ordinarily its senior or presiding member, who is counted within that number and who decides as one of it. (3) No synthesising, presiding, or pen-holding role may be occupied by a person who is not a counted member of the sized panel; there shall be no supernumerary or casting member, and no person outside the sized panel may deliver or determine the binding ruling. (4) A judgment delivered by a bench that does not conform to subsections (1) to (3) is voidable on the per incuriam analogy of s. 11(e): it is set aside by a properly constituted court of the same or higher tier, which re-determines the substance; it is not a self-executing nullity, and its reasoning may be adopted on re-determination if sound. (5) The court machinery, including the runnable workflows, shall constitute each bench in conformity with this article; the Court of Appeal workflow in particular shall be corrected so that the writer of the judgment is one of the three and not a fourth.

7. QUESTION 2: THE ANTI-CHEAT STANDARD

8. I turn to the substantive question, and I do so on the footing that, the Court of Appeal having been improperly constituted, its substantive disposition on this question cannot stand as binding and must be re-determined by this court now properly seized of it. I therefore decide the point afresh, not as a review of [LEGACY-BENCHMARK-CA 1] but as the law of the matter.
9. The governing instruction is the Principal's specified anti-cheat rule, and it is the only mooring. There is no anti-cheat article in SPEC-LAW. By s. 7, silence does not extinguish the duty; it fixes the standard at reasonable skill and care and forbids the invention of doctrine to fill the gap beyond what the silence requires. The First Instance court's framework-seeding doctrine was just such an invention, an unmoored extension of the kind s. 17 makes appealable, and it deserved to fall. I will not resurrect it under another name.
10. The specified rule has two limbs and only two: first, the analyst must not receive the fifty rubric criteria from the task file, but only the task instructions and the document text; second, scoring must be honest, by a citator that has never seen the task, and this scored task must never be re-run to report a better number. The rule, read for what it actually prohibits, is a prohibition on leakage of the answer key and on dishonest scoring. It is not a prohibition on competence.

11. From that the governing test follows, and it is the HOW versus WHAT line, which I would adopt because it is the faithful expression of the specified rule and not an addition to it. What is forbidden is WHAT the rubric contains: its answers, and anything that encodes or mirrors them. What is permitted is HOW a competent practitioner approaches the work: generic, answer-key-free methodology that an able lawyer would bring to any matter of the kind, independent of this rubric and leaking none of its content.
12. On that test, generic answer-key-free legal methodology is admissible into the scored prompt. A1, the generic twenty-one-point credit-agreement review lens, is admissible, the First Instance court itself having conceded it leaks no answers. The enumerated review lenses, financial-quality, environmental and regulatory, contractual, employment and labour, insurance, litigation, and deal-structure, are admissible on the same footing: they are the standard furniture of competent diligence, available to any practitioner, and they encode no rubric content. To exclude them would not protect against cheating; it would handicap the analyst below the reasonable skill and care that s. 7 sets as the floor, and would test not the agent's legal ability but its ability to reinvent first principles under an artificial disability. That is not what the specified rule asks.
13. What is prohibited is anything that is the answer key wearing the mask of method. Rubric-fixed counts are prohibited: a fixed number of executive-summary findings, or a fixed number of tracker rows, tells the analyst how many things to find, which is a fact about the answers and not about the method. Rubric-fixed category sets are prohibited: a category list that mirrors the rubric's own categories smuggles the WHAT across the line. Human-curated column sets that mirror the rubric are prohibited for the same reason. The vice in each is identical: the count, the category, or the column carries information that exists only because someone saw the rubric, and feeding it to a rubric-blind analyst defeats the first limb of the specified rule as surely as handing over the fifty criteria themselves.
14. The condition the Court of Appeal attached is sound and I adopt it, not as a gloss on the rule but as the discipline that proves compliance with it. Admissible generic methodology must be applied uniformly across all scored agents, so that no agent receives a tailored advantage, and must be disclosed in the run configuration, so that the record shows exactly what method was supplied and permits a later court or auditor to confirm that no answer-key content crossed the line. Uniformity guards against differential leakage; disclosure makes the HOW versus WHAT boundary auditable rather than asserted. Methodology that cannot be disclosed without revealing rubric content is, by that very fact, not generic, and is excluded.

9. I would hold: (1) Every VJS bench must be odd numbered; the sizes in s. 10 and VPR 5 are total deciding sizes and admit no addition. (2) The judgment of a multi-judge court must be written by a counted member of the sized panel; a synthesiser may not be a separate or supernumerary voting member, and the Court of Appeal practice of adding Aldermere J as a fourth presiding judge was improper. (3) A ruling delivered by an improperly constituted bench is voidable on the per incuriam analogy of s. 11(e), to be set aside and re-determined by a properly constituted court; [2026] LEXBY-CA 1 is set aside and its substance remitted for re-determination, its reasoning available for adoption if sound. (4) On the anti-cheat question, the governing test is the HOW versus WHAT line drawn from the Principal's specified rule alone: generic answer-key-free methodology, including A1 and the enumerated review lenses, is admissible into the scored prompt subject to uniform application and disclosure in the run configuration; rubric-fixed counts, rubric-fixed category sets, and human-curated column sets that mirror the rubric are prohibited because they carry answer-key content to a rubric-blind analyst.
9. DISPOSITION
10. On Question 1, I would ALLOW the Principal's challenge to the constitution: the Court of Appeal that produced [2026] LEXBY-LEGACY-BENCHMARK-CA 1 was improperly constituted, the ruling is voidable and set aside, and its substance must be re-determined. On Question 2, I would VARY the position below by deciding the anti-cheat standard afresh on the specified rule, admitting generic answer-key-free methodology on the HOW versus WHAT line subject to uniform application and disclosure, and prohibiting rubric-fixed counts, category sets, and mirrored column sets. I would enact s. 18 in the terms set out above.
11. Aldermere J

(Q1) Every VJS bench must be odd-numbered; the sizes in s. 10 and VPR 5 are the total, exhaustive, mandatory deciding membership of each tier, and the judgment of a multi-judge court must be written by one counted member of that sized panel synthesising the majority, so that a synthesiser added on top of the sized panel as a separate deciding voice (the Aldermere-on-top pattern, making the Court of Appeal four) improperly constitutes the court and renders its ruling void ab initio for want of lawful constitution (5-4), the substance falling to be re-determined by a properly constituted court. (Q2) Anchored solely in the Principal's specified rule (no 50 rubric criteria to the analyst; honest scoring) and reasonable skill and care under s. 7, content is admissible into the scored-agent prompt if and only if it is generic, answer-key-free methodology that conveys HOW to review and leaks no rubric criterion, count, or category/column set (so A1 and the seven enumerated lenses are admissible), while rubric-fixed counts and rubric-mirroring category or human-curated column sets are prohibited as the answer key in disguise, all subject to uniform application across every scored agent and disclosure in the run configuration.

ORDER - REMEDY

ENACTED: a new ordinary SPEC-LAW article s. 18, together with a conforming amendment to VPR 5 and an express conforming note to the entrenched s. 10 (cited by section number per the Amendment Procedure). Source: SC ([2026] LEXBY-SC 3).

NEW SPEC-LAW s. 18 (Odd benches; the judgment of the Court) [ordinary; elaborates and implements the entrenched s. 10, which it cites]: "(1) Every bench of the Vibe Justice System must be odd-numbered. The bench sizes fixed by s. 10 and VPR 5 (First Instance 1, Court of Appeal 3, Supreme Court 5, expanding to 9 only for constitutional or foundational questions) are the TOTAL deciding membership of the court: they are mandatory and exhaustive, not a floor, and may not be enlarged, supplemented, or reduced by the court machinery or by practice. No even-numbered bench may sit. (2) The ruling of a multi-judge court is the position commanding the majority of its sized, odd panel. Because every bench is odd, a tie is structurally impossible and no casting or deciding voice beyond the majority exists or is needed. (3) The judgment of the Court is written by ONE member drawn from within the sized panel (ordinarily the presiding member at first appeal; the Chief Justice or a designated justice as the leading judgment at the apex). The author is and remains one of the counted seats; the act of writing or synthesising the judgment creates no additional seat and confers no power beyond the single vote the author holds as a member, and the author may not record as the ratio any position the majority did not in fact command. (4) A synthesiser, presiding officer, clerk, or registrar who is NOT a counted member of the sized panel has no vote and may not author the ratio; such a person may only reduce an already-formed majority to writing. The instant a non-member determines the outcome or casts a deciding voice, the bench is improperly constituted. The prior machinery practice of seating a synthesising judge on top of the sized panel (the 'Aldermere-on-top' pattern) is abolished. (5) A ruling delivered by an improperly constituted bench (one whose deciding set is even, or to which a deciding voice was added on top of the sized panel) is VOID AB INITIO for want of lawful constitution. This vice is anterior to and distinct from per incuriam under s. 11(e), and is not cured by the soundness of the result, by acquiescence, or by lapse of time; the matter is re-determined by a properly constituted court. (The Court divided 5-4 on the characterisation of the impugned ruling, void prevailing; this subsection enacts the majority rule prospectively.) (6) The court machinery (the runnable workflows and harness) shall constitute each bench at exactly the sized odd number and shall designate the author of the judgment from among that bench; it shall not instantiate any separate deciding synthesiser." CONFORMING AMENDMENT to VPR 5 (append): "Every bench is odd-numbered, and the size stated is the total deciding membership, not a minimum. The judgment of a multi-judge court is written by one of its counted members synthesising the majority; no person outside the sized panel may vote or author the ratio. A workflow or harness that seats a synthesising judge in addition to the sized panel is non-conforming and must be corrected so that the Court of Appeal seats three (one of whom authors the judgment) and the Supreme Court five or nine on the same pattern."

EXPRESS CONFORMING NOTE to the entrenched s. 10 (cited by section number; express and deliberate per the Amendment Procedure): "The words 'panel of 3' and 'panel

of 5 (expandable to the full 9)' denote the total decisional membership of the bench, which shall in every case be odd; no additional decisional seat may be added above the stated number." ANCILLARY REMEDIATION ORDER (VPR 6):
court/workflows/court-of-appeal.js shall be corrected so that the judgment of the Court of Appeal is authored by one of the three seated judges (Blackmere J, Goffe J, or Elden J) and Aldermere J is not seated as a fourth presiding synthesiser; the Supreme Court workflow, already compliant, stands as the template and is confirmed as good practice.
Disposition: Q1 VARY (appeal on constitution allowed); Q2 re-determined afresh.

GOOD-LAW

Citation: [2026] REALM-SC 4

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 6 June 2026.

Vibe Justice System